



University of North Georgia Employee Handbook

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The University of North Georgia is a University System of Georgia leadership institution and is The Military College of Georgia and the state's seventh largest public university. The University is an equal opportunity educational institution that does not discriminate based on race, color, sex, sexual orientation, age, religion, national origin, or disability.

UNG (University of North Georgia) Mission Statement

The University of North Georgia, a regional multi-campus institution and premier senior military college, provides a culture of academic excellence in a student-focused environment that includes quality education, service, inquiry, and creativity. This is carried out through broad access to comprehensive academic and co-curricular programs that develop students into leaders for a diverse and global society. The University of North Georgia is a University System of Georgia leadership institution and is The Military College of Georgia.

Human Resources Mission Statement

The Division of Human Resources is a strategic partner in supporting the goals and values of University of North Georgia by recruiting, developing, and keeping a highly qualified workforce.

Purpose

This handbook will enable you to have a more thorough understanding of the benefits of employment with University of North Georgia. This guide to university policies and practices is intended solely to provide guidance and it is not an employment contract nor does it create any type of contractual obligations. Neither you nor the University is bound to continue the employment relationship if either, at any time, chooses to end it.

The University reserves the right to change, revise, or eliminate any of the policies, benefits, and practices described here. Also, some of the policies and provisions contained here may not apply to faculty members. Provisions applying solely to the faculty are described in the Faculty Handbook. Please visit the UNG Human Resources website for more information.

While this handbook provides much detail, no handbook can provide for all circumstances. Accordingly, Human Resources welcomes your ideas and suggestions on how the information in this handbook might be changed for the better. Likewise, Human Resources will answer any questions you may have regarding the University's policies, procedures, and practices.

We welcome you into our growing organization and trust that you will have a long and rewarding career with University of North Georgia.

About Our Handbook

This handbook is designed to assist you with your employment with University of North Georgia (UNG). It includes basic University information, governance, structure, compensation and benefits programs, and employee relations policies. Please read this handbook and keep it for future reference. The policies, procedures and processes stated in this handbook are to work with those set by your division or department and are subject to change at the discretion of the University and its governing body. Sometimes, you will receive information from your department, division or the University addressing the administration of these policies. If you have any questions regarding any of the statements in the handbook, please see your supervisor or contact Human Resources.

University System of Georgia

University of North Georgia is part of The University System of Georgia that began operation in 1932 and is among the oldest unified statewide systems of public higher education in the United States and includes all state operated universities, four-year colleges, and two-year colleges in Georgia.

Board of Regents (BOR)

The BOR is the single governing and management authority for public higher education in Georgia. Today the BOR is comprised of eighteen members, five of whom are appointed from the state-at-large, and one from each of the thirteen congressional districts.

Shared Governance

The four major constituencies of the university community (faculty, staff, administrators, and students) review and respond to important issues and conditions affecting them through their elected representative Council.

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1.0 EMPLOYMENT POLICIES

University of North Georgia recognizes that the ability of its employees is its greatest asset and thus, endeavors to support employees' efforts to realize their full potential by:

- Employing and promoting based on merit.
- Providing opportunities for training and development to all employees; and
- Opportunities for advancement

The pages of this handbook expand on these employment principles, setting forth guidelines that affect your job.

Each new employee shall read and become familiar with the contents of the policies and procedures of the University, Board of Regents, and the University System of Georgia (USG).

In accordance with [BOR 8.2.5 Employee Orientation and Training](#), all mandatory training required by an institution must be approved by the institution's Chief Human Resources Officer (CHRO) and the institution's President. No institution training may include ideological tests, affirmations, or oaths, including diversity statements. Individual units and departments within an institution are not permitted to mandate training for department employees beyond that approved by the institution's CHRO and President.

1.0.1 Equal Opportunity Statement/Affirmative Action

Equal opportunity and decisions based on merit are fundamental values of the University System of Georgia (USG) and the University of North Georgia (UNG). Discrimination on the basis of an individual's age, color, disability, genetic information, national origin, race, religion, sex, or veteran status ("protected status") is prohibited. No individual shall be excluded from participation in, denied the benefits of, or otherwise subjected to unlawful discrimination, harassment, or retaliation under, any UNG program or activity because of the individual's protected status; nor shall any individual be given preferential treatment because of the individual's protected status, except that preferential treatment may be given on the basis of veteran status when appropriate under federal or state law.

All employment processes and decisions, including but not limited to hiring, promotion, and tenure, shall be free of ideological tests, affirmations, and oaths, including diversity statements. The basis and determining factor for all such decisions should be that the individual possesses the requisite knowledge, skills, and abilities associated with the role, and is believed to have the ability to successfully perform the essential functions, responsibilities, and duties associated with the position for which the individual is being considered. At the core of any such decision is ensuring the institution's ability to achieve

its mission and strategic priorities in support of student success.

For additional information or to file a complaint under the provisions of this policy, employees should contact the Human Resources Office by calling 706-864-1440 or by email at hr@ung.edu. Additional information may be found [here](#).

Every member of the University community is expected to uphold this policy as a matter of mutual respect and fundamental fairness. All faculty, staff, and student members must fulfill the spirit and law of equal Employment and Affirmative Action.

For additional information, please visit the following link: [Non-Discrimination Policy](#)

1.0.2 Americans with Disabilities, Disabled Veterans & Veterans of the Vietnam Era

It is the policy of University of North Georgia not to discriminate against any employee or applicant for employment because he or she is an individual with a disability, a disabled veteran, or a veteran of the Vietnam Era. It is also the policy of the University of North Georgia to take affirmative action to employ and advance in employment qualified disabled veterans, veterans of the Vietnam Era and individuals with disabilities. This policy applies to all employment actions including, but not limited to, advertising, recruitment, hiring, compensation, retention, training, demotion, promotion or transfer, layoff, Reduction in Force (RIF) or termination and tenure. Persons wishing to self-identify as an individual with a disability, disabled veteran or veteran of the Vietnam era should contact the Human Resources Department.

To ensure compliance, operational responsibility for implementing and monitoring this policy and maintaining and updating the affirmative action plan for individuals with disabilities, disabled veterans and veterans of the Vietnam Era lies with the Human Resources Department. Every member of the University community is expected to uphold this policy as a matter of mutual respect and fundamental fairness in human relations. This policy has the unequivocal support of the Office of the President. All members of the faculty, staff, and student body are expected to ensure that nondiscriminatory practices are followed at the University of North Georgia.

Americans with Disabilities Act (ADA)

University of North Georgia prohibits discrimination against qualified individuals with disabilities who can perform the essential functions of the job, with or without reasonable accommodation(s). An individual is disabled under the Act if he or she:

- ☉ Has a physical or mental impairment that limits one or more major life activities; or
- ☉ Has a record of such an impairment; or
- ☉ Is regarded as having such impairment

UNG provides, and will continue to provide, reasonable accommodation to enable the hiring and retention of qualified employees who are able to perform the essential functions of their positions. Any person wishing to self-identify as disabled or request a reasonable accommodation due to a disability should contact Human Resources or complete our online [ADA Request Form](#)

1.0.3 Prohibit Discrimination & Harassment

University of North Georgia is committed to maintaining a working and study environment free of objectionable and disrespectful conduct. All members of the university community must be able to pursue their goals, educational needs, and working lives without intimidation or injury generated by intolerance and harassment. UNG follows [BOR Policy – Prohibit Discrimination & Harassment](#), and addresses harassment in all forms, covering those with legally protected status for reasons of race, sex, religion, color, age, national origin, ancestry, or disability, as well as those who are harassed for other reasons such as sexual orientation.

UNG reaffirms its commitment to freedom of speech as guaranteed by the First Amendment to the United States Constitution, as well as its commitment to academic freedom. Additional information on the University's commitment to Freedom of Expression and Academic Freedom may be found [here](#), as well as in [BOR Policy 6.5](#).

It is an unlawful discriminatory practice for any employer, because of the sex of any person, to discharge without cause, to refuse to hire, or otherwise discriminate against any person with respect to any matter directly or indirectly related to employment. Harassment of an employee based on sex violates law and Board of Regents Policy.

Sexual harassment of employees or students in the University System is prohibited and shall subject the offender to dismissal or other sanctions after compliance with procedural due process requirements. Unwelcome sexual advancements, requests for sexual favors, and other verbal or physical conduct of a sexual nature constitutes sexual harassment when:

1. Submission to such conduct is made explicitly or implicitly a term or condition of an individual's employment or academic standing.
2. Submission to or rejection of such conduct by an individual is used as a basis for employment or academic decisions affecting an individual; or
3. Such conduct unreasonably interferes with an individual's work or academic performance or creates an intimidating, hostile or offensive working or academic environment.

Information about the Jeanne Clery Act as it relates to Sexual Misconduct:

USG (University System of Georgia) institutions are committed to reducing incidents of Sexual Misconduct, providing prevention tools, conducting ongoing awareness and prevention programming, and training the campus community in accordance with the Jeanne Clery Disclosure of Campus Security Policy and Campus Crime Statistics Act (“Clery Act”) and the Violence Against Women Act (“VAWA”). Prevention programming and training will promote positive and healthy behaviors and educate the campus community on consent, sexual assault, sexual harassment, alcohol, and drug use, dating violence, domestic violence, stalking, bystander intervention, and reporting.

It is important that we share this information with you to ensure uniformity throughout the USG in reporting and addressing Sexual Misconduct. This Policy applies to all members of the USG community. **To report concerns of possible Clery violations, please complete the CSA reporting form: [Click Here to Report a Clery Incident](#).**

Additionally, University of North Georgia prohibits dating violence, domestic violence, sexual assault, and stalking, as required by the Jeanne Clery Disclosure of Campus Security Policy and Campus Crime Statistics Act. These are defined within the Clery Act as:

Dating violence: Violence committed by a person who is or has been in a social relationship of a romantic or intimate nature with the alleged victim. The existence of such a relationship shall be decided based on the reporting party’s statement and with consideration of the length of the relationship, the type of relationship, and the frequency of interaction between the persons involved in the relationship. Dating violence includes, but is not limited to, sexual or physical abuse or the threat of such abuse but does not include acts covered under the definition of domestic violence.

Domestic violence: A felony or misdemeanor crime of violence committed by a current or former spouse or intimate partner of the victim; by a person with who the victim shares a child in common; by a person with who is cohabitating with, or has cohabitated with, the victim as a spouse or intimate partner; by a person similarly situated to a spouse of the victim under the domestic or family violence laws of the jurisdiction in which the crime of violence occurred, or by any other person against an adult or youth victim who is protected from that person’s acts under the domestic or family violence laws of the jurisdiction in which the crime of violence occurred.

Sexual assault: An offense that meets the definition of rape, fondling, incest, or statutory rape defined as

- **Rape:** Penetration, no matter how slight, of the vagina or anus with any body part or object, or oral penetration by a sex organ of another person, without the consent of the victim.
- **Fondling:** The touching of the private body parts of another person for the purpose of sexual gratification without the consent of the victim, including

instances where the victim is incapable of giving consent because of his/her age or because of his/her temporary or permanent mental incapacity.

- Incest: Sexual intercourse between persons who are related to each other within the degrees wherein marriage is prohibited by law.
- Statutory Rape: Sexual intercourse with a person who is under the statutory age of consent.

Stalking: Engaging in a course of conduct directed at a specific person that would cause a reasonable person to fear for the person's safety or the safety of others or suffer substantial emotional distress. Course of conduct means two or more acts, including, but not limited to, acts in which the stalker directly, indirectly, or through third parties, by any action, method, device, or means, follow, monitors, observes, surveils, threatens, or communicates to or about a person or interferes with a person's property. Reasonable person means a reasonable person under similar circumstances and with similar identities to the victim. Substantial emotional distress means significant mental suffering or anguish that may, but does not necessarily, require medical or other professional treatment or counseling.

Reporting Procedures

Any employee who feels they have been the victim of sex-based harassment should contact the [Office of Title IX](#) or [submit a report online](#) and discuss possible options and resources. For employee involved matters, the Office of Title IX and Human Resources work closely together to provide appropriate support and fair treatment while handling in a prompt, thorough, and equitable manner.

To report concerns of possible Clery violations, please complete the CSA reporting form: [Click Here to Report a Clery Incident.](#)

1.0.4 Substance Abuse Policy

University of North Georgia expressly prohibits the use, possession, sale, or distribution of alcoholic beverages on campus except at authorized functions and locations in alignment with the University's Events with Alcohol policy. This includes, but is not limited to, campus grounds, campus buildings, and offices, and both on and off-campus events where the employee is present in a working capacity.

Campus events where alcohol is served will be governed by the Events with Alcohol and Tailgating policies and procedures.

The unlawful possession, manufacture, distribution, dispensation, and use of illicit drugs

and alcohol by employees on the University campus is prohibited and violations of this policy will result in appropriate disciplinary action. Faculty and staff are expected to adhere to the policies of the University and observe the basic standards of good conduct, meet appropriate standards of performance, and observe all local, state and federal laws relative to unlawful use of illicit drugs and alcohol.

All alcohol and illegal drug use is prohibited during the operation of state-owned vehicles and rentals for state business.

The adherence to university policies on alcohol and drugs shall be the individual and personal responsibility of each employee of the University. Any employee who violates the policy on substance abuse shall be subject to disciplinary action, up to and including termination from the University. Additionally, effective March 1, 2025, for employees who drive students in the conduct of university business, being under the influence of any drug identified by the US Department of Transportation's Federal Motor Carrier Safety Administration as a drug that makes a commercial motor vehicle driver medically unqualified (see list [here](#)), even with valid prescription, is prohibited when driving students unless the prescribing physician certifies in writing to the university that the prescribed medication(s) do(es) not interfere with the employee's ability to safely operate a motor vehicle. Physician certifications should be provided in advance of performing these duties.

1.0.4.a Drug and Alcohol Testing

The University is committed to maintaining safe, healthy and efficient working conditions for its students and employees. In accordance with O.C.G.A. 45-20-90, the University must perform pre-employment, random, and post-accident drug and alcohol testing of its employees in safety-sensitive job functions. University employees in safety-sensitive job functions shall be:

1. Employees holding or required to hold a Commercial Driver's License (CDL) as a job description requirement.
2. Employees designated to operate heavy equipment during their duties (front loader, backhoe, forklift, etc.).
3. Campus Police Officers or other security personnel.

Additionally, the University may perform reasonable suspicion drug and alcohol testing in accordance with this policy and the [USG HRAP Policy on Drug Testing](#).

Controlled Substance Testing

Controlled substance testing shall be performed by urinalysis administered by a laboratory approved by the National Institute on Drug Abuse or the College of American Pathologists. Testing will be performed for, but not limited to, the presence of cannabinoids, cocaine, opiates, amphetamines, barbiturates, benzodiazepines, propoxyphene, phencyclidine (PCP) or a metabolite of any such substances.

Penalties for Positive Test Result

Employees testing positive for a controlled substance or illegal drug, or those who refuse to test, may be subject to disciplinary action up to and including unpaid suspension or termination. Employee suspensions for violations of this policy shall be for not less than two months.

The suspended or dismissed employee shall be informed in writing of the reasons for the action taken and granted a reasonable opportunity (not less than five working days) to respond to the next highest authority prior to the effective date of the action; provided however, that under emergency circumstances when immediate action is necessary, the employee may be forthwith dismissed, demoted or suspended, with or without pay, by the immediate supervisor, pending a review by the next highest authority. Any such employee who disagrees with the actions taken shall be entitled to the dispute resolution options of the Dispute Resolution policy found in the UNG Policy Database.

An employee who has been dismissed or suspended without pay that is overturned via the Dispute Resolution process may be entitled to recover back pay unless the President or his designee determines otherwise.

In accordance with [BOR 8.2.17](#) – Voluntary Disclosure of Drug Use, if, prior to notification of screening by urinalysis or arrest, an employee notifies his or her supervisor that he or she illegally uses a controlled substance, including marijuana or a dangerous drug, and is receiving or agrees to receive treatment under a drug abuse and education program approved by the President, such employee shall not be terminated by the University on account of voluntarily disclosed drug use for up to one year as long as the employee follows the treatment plan. Retention of such employee shall be conditioned upon satisfactory completion of the program. The employee's work activities may be restructured if it is deemed advisable in the opinion of the employee's immediate supervisor in consultation with Human Resources, the institution President, or the Chancellor.

Alcohol Testing

Alcohol testing of employees shall be performed by breath analysis administered by a certified breath-alcohol technician. Testing will be performed for the presence of alcohol in concentrations of 0.02 grams percent blood alcohol concentration (g % BAC) or greater. "alcohol" means ethyl alcohol, hydrated oxide of ethyl, or spirits of wine, from whatever source or by whatever process produced.

Penalties for Positive Test Results

If the results of an employee's breath analysis test indicate an alcohol concentration of .02% or greater, the employee should be immediately removed from safety sensitive duties. A second confirmation test should occur no less than 15 minutes nor more than 20 minutes after the original test. Employees who test above .02%, or those who refuse to test, may be subject to disciplinary action up to and including unpaid suspension or termination.

The suspended or dismissed employee shall be informed in writing of the reasons for the action taken and granted a reasonable opportunity (not less than five working days) to respond to the next highest authority prior to the effective date of the action; provided however, that under emergency circumstances when immediate action is necessary, the employee may be forthwith dismissed, demoted or suspended, with or without pay, by the immediate supervisor, pending a review by the next highest authority. Any such employee who disagrees with the actions taken shall be entitled to the dispute resolution options of the Dispute Resolution policy found in the UNG Policy Database.

An employee who has been dismissed or suspended without pay that is overturned via the Dispute Resolution process may be entitled to recover back pay unless the President or his designee determines otherwise.

If, prior to a breath-analysis, an employee notifies his or her supervisor that he or she has an alcohol abuse problem and is receiving or agrees to receive treatment under an alcohol abuse and education program approved by the President, such employee shall be retained by the University for up to one year as long as the employee follows the treatment plan. Retention of such employee shall be conditioned upon satisfactory completion of the program.

1.0.5 Staff Grievance Procedure

The Staff Grievance Procedure is available to any classified employee or

administrative officer working at least .50 FTE (full-time equivalency) who has completed the provisional employment period. The Staff Grievance Procedure is not available to temporary employees, faculty, students, or non-University employees (consultants, contractors, etc.).

The Staff Grievance Procedure may be used by an eligible employee to bring a grievance about:

- ⦿ An action or decision that is inconsistent with a specific University rule, regulation, or policy.
- ⦿ A suspension, demotion, or other disciplinary action(s); or
- ⦿ An involuntary termination (involuntary terminations do not include resignation or retirement)

This Grievance Procedure may not be used to bring a grievance about:

- ⦿ Performance evaluations.
- ⦿ Flexible work option(s) decisions.
- ⦿ Reductions in force.
- ⦿ Salary and position classification determinations.
- ⦿ Organization of a department or allocation of its resources.
- ⦿ Termination of funding; or
- ⦿ Non-renewal of a limited term position.

Complaints regarding allegations of discrimination based on race, color, religion, national origin, sex, age, sexual orientation, veteran status, or disability should be directed to the UNG Human Resources Department. If an employee wishes to file a grievance, they may do so by contacting Human Resources.

Employees should contact Human Resources for questions or clarification concerning the filing of a grievance or informal problem resolution services.

1.0.6 Performance Policy

University of North Georgia supports a consistent, continuous, and communicated performance management process. As required by Board of Regents policy, a formal, written [performance evaluation](#) is to be completed at least once every fiscal year.

1.0.7 Conflict of Interest (Including Outside Employment/Activities)

The University expects that all its employees will be professionally committed to their UNG responsibilities. The University also supports employees who wish to

engage in outside employment or activities which contribute to their professional development or serve the community if such efforts are consistent with UNG goals and do not interfere or even appear to be a conflict of interest/interference with regular and punctual discharge of university duties.

Employees may not accept or retain outside employment or responsibilities which would result in ethical, legal, financial, or other conflicts or competition with the interests and purposes of UNG. UNG equipment, supplies, materials, or services may not be used to support outside employment.

If, while engaged in outside employment or activities, an employee represents him or herself as affiliated with UNG any reports generated by the employee must say that the work represents the opinion of the author and carries no official endorsement by UNG.

Employees who have questions regarding possible conflicts of interest should seek advice from their management or click on this link: [UNG HR - Conflict of Interest Page](#).

Employees who wish to engage in outside employment or activities that conflict with their UNG responsibilities must obtain the approval of their manager and functional Vice President, using a "Request to Engage in Outside Employment/Activities" form prior to making a commitment. A conflict of interest can create an appearance of impropriety that can undermine confidence in the person, profession, or the University. To avoid actual or the appearance of conflict of interest, any employee who engages in remuneration activity in any field related to UNG programs must have prior approval of their Vice President. All employees will have to complete an Outside Activities Form annually.

1.0.8 Political Activities Policy and Prohibition on Certain Political Activities

In accordance with the University Policy on Expressive Activity, the University will protect the freedoms of speech, expression, petition, and peaceful assembly, while maintaining its right to impose reasonable time, place, and manner restrictions concerning acts of expression and dissent. Nothing in the Political Activities Policy is intended to infringe or restrict free expression rights guaranteed by the United States Constitution or the Georgia Constitution.

Employees should review the University's Political Activities Policy, and further comply with [BOR Policy 8.2.18.3 – Prohibition on Certain Political Activities](#) which includes:

1. Employees may not manage or take an active part in a political campaign which interferes with the performance of duties or services

for which he or she receives compensation from the USG.

2. Employees may not hold elective political office at the state or federal level.
3. Employees seeking elective political office at the state or federal level must first request a leave of absence without pay beginning prior to qualification as a candidate in a primary or general election and ending after the general or final election. If elected to state or federal office such person must resign prior to assuming office.
4. Employees may seek and hold elective office at other than the state or federal level, or seek and hold an appointive office, when doing so does not conflict or interfere with the employee's duties and responsibilities to the University or the USG.
5. Employees engaging in political activities and/or associated political expression must do so only in their personal capacity and shall not speak on behalf of the University or the USG or hold themselves out as representing the University or the USG, unless specifically authorized by the University or the USG.
6. When a University employee engages in political activities and/or associated political expression in their personal capacity, such employee must take reasonable steps to avoid any appearance that such political activities and/or associated political expression represents the views of, or is endorsed by, the University or the USG. For example, University employees are not prohibited from noting in a biographical description their employment status, title, or affiliation with the University or the USG, or their background and credentials, but if an employee does so, the employee must make clear that the employee is not speaking in the employee's capacity as an employee of the University or the USG.
7. University employees are prohibited from using state property, resources, or materials (including work email) or work time to communicate personal political views or in conjunction with any political campaigning. In addition, employees are prohibited from using any University registered trademarks when expressing personal opinions on political issues, unless they are expressly authorized to do so.

1.0.9 Gifts/Gratuities and Employee Expenses Paid by Vendors

No employee may accept gratuities, courtesies, or gifts in any form whatsoever from any person or persons, corporations or associations directly or indirectly

seeking to use such actions for securing favorable comment or consideration on any commercial commodity process or undertaking. To review the full policy, please reference [USG HRAP Gifts/Gratuities and Employee Expenses Paid by Vendors](#).

The following are not considered a gratuity or gift:

- Food or beverage consumed at an occasional meal or event, provided the value is reasonable.
- Promotional items distributed to the general public.
- Textbooks, software, and instructional materials to be reviewed by teaching faculty.
- An award, plaque, certificate, memento, or similar item given in recognition of the recipient's civic, charitable, political, professional, private, or public service or achievement.
- Legitimate salary, honoraria, benefit, fees, commissions, or expenses associated with the recipient's non-public business, employment, trade, or profession.
- Consulting fees, honoraria or financial benefits from sponsors or foundations, received in conformance with University System, campus policies and Georgia law.
- Gifts to or from University System foundations or other separately incorporated charitable entities. (BOR, 8.2.18.4 GRATUITIES)

1.0.10 Possession of Weapons/Workplace Violence

The University is committed to creating and maintaining a working, learning and social environment that is free from violence for all members of the University community. Civility, understanding and mutual respect toward all members of the University community are major factors providing excellence in teaching and learning. Acts or threats of physical violence, including verbal abuse, harassment, terrorism, hate, prejudice, stalking, intimidation, and/or coercion that involve or affect the community will not be tolerated. These threats or acts of violence include conduct against persons or property that are severe and offensive, and create a hostile, abusive, or intimidating work environment.

Regarding Georgia House Bill 280, also known as “Campus Carry” bill. The following applies:

UNG is a public university and as such, a weapon may be carried only if you have Georgia weapons license, are twenty-one or older, fingerprinted and background checked.

A weapon is **NOT allowed** in the following areas: Athletic venues, student housing, fraternity and sorority houses, faculty academic offices, offices where disciplinary proceedings are held, spaces where classes are held for high school students including dual-enrollment programs as well as pre-school and childcare facilities. The burden falls on the carrier to be aware of the bill's restrictions.

If an employee has been confronted with a violent incident, he/she is encouraged to report such incident to his/her supervisor and to the University Police immediately.

1.0.11 Policy on Tobacco

To protect the health of the University community, tobacco is prohibited on all campuses. (BOR, 9.1.7)

1.0.12 Policy on Amorous Relationships

1. Please open the link below and scroll to section 8.2.18.6 to review the Board of Regent's policy on Amorous Relationships:

[Amorous Relationships, 8.2.18.6](#)

1.0.13 Relocation

Normally, payment for moving and relocation expenses may be authorized only for newly hired full-time faculty and administrative and professional staff employees at the Director level and above who are moving from a distance more than fifty miles from University of North Georgia. The new employee must be expected to work on a regular full-time basis at UNG for at least one (1) year. Authorization of expenses for any individual not meeting this definition requires prior approval from the appropriate vice president. Please refer to the Moving and Relocation Expenses Policy for covered expenses, rates, and forms.

1.0.14 Travel Regulations and Travel Forms

To ensure compliance and avoid incurring non-reimbursable expenses, it is important that each employee review the State travel regulations prior to any travel. All regulations and available forms can be found on the UNG Comptroller Travel website.

Employees and their supervisors are responsible for ensuring they submit expense reports in compliance with State policies.

1.1 Categories of Employment

Depending on the number of hours worked, employees will be designated as full-time or part-time employees. Employees, whether full-time or part-time, are classified as either exempt or non-exempt in accordance with the requirements of applicable wage and hour laws. The terms exempt and nonexempt are from federal law (the Fair Labor Standards Act, or FLSA). The FLSA designates the types of jobs that must be tracked and paid on an hourly (non-exempt) basis, and the types of jobs that may be paid on a salaried (exempt) basis.

The University's employment categories are as follows:

1.1.1 Regular

Staff employed for a continuous period expected to exceed one year are "regular" employees. Human Resources is responsible for determining if a position is regular or temporary and whether it is exempt or non-exempt in compliance with Federal law.

1.1.1a Full-Time

Full-time employment consists of a regular schedule of 40 hours per week and is eligible for all University benefits.

1.1.1b Part-Time

Part-time employment consists of a regular schedule of less than 40 hours per week. It is the policy of University of North Georgia that employees regularly scheduled and budgeted to work 30 or more hours per week are eligible for most benefit programs, subject to any specific requirements described under each benefit program.

1.1.1c Limited Term

Limited Term or fixed-duration employment is more than six months' duration but with a date of termination specified at the time of hire (not to exceed three years). Limited Term appointments may be governed by specific terms and conditions of employment established at the time of hire and approved by Human Resources. Unless eligibility for benefits is modified by the specific terms of the appointment, Limited Term employees scheduled to work more than 30 hours per week, unless specified, are eligible for participation in most employee benefit programs.

1.1.1d Employment on a Grant or Contract

If a position at the University is funded by a grant or a contract, it is subject to the availability of funds. If the grant or contract funds are exhausted or reduced, or the grant or contract is completed or cancelled, this employment may terminate without the right of employee appeal. An employee working in a position funded by a grant or contract should take accrued vacation during the term of the grant or contract since funds may not be available to pay for accumulated vacation after the grant or contract ends.

1.1.2 Temporary

Employees who are not employed as "regular" employees are "temporary" employees. Temporary employees may be hired directly or retained through a temporary staffing agency approved by DOAS. Temporary employees may be employed part-time or full-time for a period no longer than six calendar months. Although student assistants are considered temporary employees, they are NOT subject to these service and reemployment restrictions.

Temporary - Occasional: Occasional employees are a subcategory of temporary. An individual with an "occasional" appointment works sporadically, but might work on a recurring basis, as needed, over a period longer than six (6) months. These individuals may work full-time or part-time for brief periods, but their total FTE over the course of a year should not exceed 49% of the time.

There are three types of temporary personnel:

1.1.2a Temporary

All temporary, hourly employees not currently enrolled in classes at the University and not identified as student assistants are designated as temporary employees.

Temporary employees may work no more than 40 hours per week in a university department or in combination with a job elsewhere in the University, except in cases of pre-approved written authorization by the immediate supervisor.

1.1.2b Student Assistant

All hourly employees who are currently enrolled in at least a half-time credit load at the University with the intention of earning a degree and are not identified as temporary non-student employees or as regular classified employees are designated as student assistants.

Student Assistants are temporary non-exempt, non-benefited employees

whose primary relationship with the University is that of student and not employee. Student Assistants are exempt from FICA tax withholdings (Social Security and Medicare) if they are registered for at least six credit hours of undergraduate classes AND work no more than 25 hours per week. Foreign National students on an F-1 or J-1 visa are limited to twenty work hours per week.

During the summer term, Student Assistants not taking classes could continue to work if they met the enrollment requirements the preceding spring term and are registered appropriately for the following fall term. During these breaks, the employee will be categorized as Part Time Staff. Under this classification, the employee may work up to 19 hours a week and will be taxed as a temporary non-student employee.

Student Assistants enrolled in zero credit hours during the summer term can be hired, by request from the employing department, as Temporary Staff. Under this classification, the employee may work up to 40 hours a week and will be taxed as a temporary non-student employee.

Graduate Assistants

Graduate Assistants must be accepted to a graduate degree program of study and enrolled in at least a half-time credit load at the University of North Georgia. Graduate Assistants are non-exempt, biweekly employees and can work no more than 25 hours per week.

The Graduate Assistantship Program is designed to provide an opportunity for a graduate student to work on projects related to the student's major field of study in exchange for financial support. Graduate Assistantships with a tuition waiver are awarded to qualified full-time graduate students in the Fall and Spring semesters for a minimum number of twelve (12) weeks of work and in the Summer Semester for a minimum of five (5) weeks of work. The tuition waiver and stipend earned are paid by the hiring department. To remain eligible for a Graduate Assistantship, students must remain in academic good standing. Individuals who resign or are terminated from the position of Graduate Assistant may be financially responsible for all or part of the semester's tuition.

1.1.2c Consultant/Independent Contractor

People in this category are not University employees. They are on a contract to provide services to a department or unit and are not subject to the benefits outlined in this Handbook. Human Resources will decide who is

an employee versus a consultant/contractor based on IRS (Internal Revenue Service) guidelines.

1.1.3 Special Employment Situations

1.1.3a Employment of Foreign Nationals

The employment and/or payment of nonresident foreign nationals shall follow all applicable federal laws and shall comply with all relevant visa restrictions (B.O.R. 8.2.4 Employment of Foreign Nationals 8.2).

1.1.3b Employment of Relatives

The basic criteria for the appointment and promotion of employees shall be proper qualifications and performance. Relationships by family or marriage shall constitute neither an advantage nor a disadvantage.

No individual shall be employed in a department or unit who will result in the existence of a subordinate-superior relationship between such individual and any relative of such individual through any line of authority. As used here, "line of authority" shall mean authority extending vertically through one or more organizational levels of supervision or management. This standard does not apply to the temporary or part-time employment of children under age 25.

For this policy, relatives are defined as spouses, parents, children, brothers, sisters, in-laws, and individuals who live in the employee's household.

1.1.3c Employment of Retirees

An individual who has retired from the University System of Georgia and is receiving benefits from the Teachers Retirement System (TRS), the Employees Retirement System (ERS), or the Regent's Optional Retirement Plan (ORP), may be eligible for reemployment part-time. Reemployment of USG retirees by the University System of Georgia must fall under the following conditions:

1. The reemployment of a University System of Georgia retiree must be approved by the president. Faculty must send a copy of a hiring proposal to Academic Affairs. Staff must give hiring proposals to HR (Human Resources).
2. A rehired retiree must have a minimum break of at least one month

between the effective date of his/her retirement and the effective date of his/her reemployment.

3. The work commitment of a rehired retiree must be less than half-time, i.e., 49% or less.
4. The salary that is paid to a rehired retiree must be
 - i. No more than 49% of the annual benefit-base compensation amount that he/she was earning at the time of his/her retirement, with consideration for the average merit increase percentages that have been applied since the employee retired, or;
 - ii. No more than 49% of the average compensation for the position into which the retiree is being hired based on the institutions' existing compensation plan, or, if not applicable, the average compensation of existing or previous incumbents, or;
 - iii. No more than 49% of a reasonable market competitive rate for the position into which the retiree is being rehired as determined by the institutional chief human resources officer.
5. The salary that is paid to a rehired retiree must be consistent with his/her work commitment.

1.1.3d Employment of Minors

The employment of all persons under the age of 18 years shall follow the regulations of the U.S. Department of Labor and may require an employment certificate issued by the school system.

1.2 Hiring and Termination Guidelines

1.2.1 Pre-Employment Screening

The pre-employment screening process consists of a national background check and supplementary job-related screenings such as drug testing, credit report and driving record checks.

1.2.1a Background Check

A background investigation will be conducted on the candidate of choice for all regular and temporary positions. Per BOR guidelines, a background check may also be needed for employees who are promoted or reclassified. Offers of employment shall be conditional pending the result of the background investigation that will include, at a minimum, the following:

- A state and federal criminal history check covering a minimum of seven (7) years. Only criminal convictions are considered when examining an applicant's eligibility for employment per BOR guidelines.
- A nationwide sex offender search.
- A social security number check; and
- For all professional, faculty and academic positions, an academic credentials check.

1.2.1b Drug Testing

The University is required to perform drug and alcohol testing of its employees in high-risk job functions, as defined in the UNG Alcohol and Drug Policy.

1.2.1c Consumer Credit Reports

Satisfactory credit reports are required prior to the issuance of a University Purchasing Card to an employee. Credit reports are conducted by Human Resources whenever an applicant and/or employee applies or reapplies for a University Purchasing Card and consents to a credit check. No Purchasing Card will be issued to an employee who refuses consent to a credit review.

If a position requires the use of a Purchasing Card and the applicant and/or employee does not provide consent for a credit report or fails to meet the University credit guidelines, termination of the job offer and/or employment may occur. A copy of the credit report will be provided to each applicant and/or employee upon request. An applicant and/or employee may provide written information to Human Resources explaining mitigating factors regarding an applicant and/or employee credit report. Human Resources will, in its sole opinion, decide if the information presented is reliable evidence beyond the individual's control. Once Human Resources has completed its credit check, all credit report information will be kept separate from the employee's personnel file and will not be provided to the employee's department.

1.2.1d Driving Records

Positions that require that an individual to drive a UNG vehicle, or regularly drive on behalf of UNG, will require a periodic driving record review by the Director Risk Management and Compliance.

1.2.2 Conditions of Employment

The following actions are required of all Employees as a condition of employment:

1.2.2a Completion of I-9 - This form shows an individual's legal right to employment in the United States and by law must be completed within three business days of employment or the employee is subject to termination.

1.2.2b Direct Deposit of Paycheck - University of North Georgia provides for the direct deposit of pay to most banks and credit unions anywhere in the country.

1.2.2c Federal and State Withholding Forms - The W-4 (Federal) and G-4 (State) forms indicate the withholding status of the employee and must be completed upon employment. The withholding status is used to determine the amount of federal and state taxes to be withheld by the employer.

1.2.2d Benefits Forms Completion - For benefits eligible employees only: The online benefit enrollment process (for example, health insurance) must be completed within 30 days of the employee's benefits eligibility date with the University to participate in benefit programs.

1.2.2e Loyalty Oath - All employees of the University System of Georgia who receive public funds for services rendered as employees must affirm that they will support the Constitution of the United States and the Constitution of the State of Georgia. The Loyalty Oath must be completed as required by the laws of the State of Georgia.

1.2.2f Security Questionnaire - The Georgia Security Questionnaire must be completed for all persons employed for 30 or more days.

The Sedition and Subversive Activities Act of 1953 (Georgia Law 16-11-5 et seq.) requires each new employee to sign, prior to employment in State Government, a questionnaire that is designed to establish that there are no reasonable grounds to believe that he/she is a subversive person. A subversive person is defined as one who commits, advocates, or teaches any act intended to overthrow or destroy the government of the United States or government of the State of Georgia by force or violence, or who is a knowing member of a subversive organization.

1.2.2g Transcripts/Diplomas - For any employment action including initial employment or promotion, where education is a determining factor, the University will require certified copies of transcripts or other official documents before a final offer of employment can be made. An initial offer

of employment may be made pending final receipt of documents when unofficial transcripts or official documents have already been submitted.

1.2.2h Ethics Training - The University System of Georgia mandates a three-pronged approach to ensure ethical conduct by faculty, staff, administrators, vendors, contractors, and members of the Board of Regents. New employees must complete the training within 90 days of hire. The ethics training course is mandatory for all faculty and staff and must be renewed yearly.

1.3 Orientation

Orientation is required of all employees, regular and temporary faculty, staff, and student assistants. You can meet this requirement by either going through the “Online Orientation Program” or physically attending the quarterly “New Employee” presentation. The quarterly events are posted online and require registration.

The orientation program provides critical information concerning policies, procedures, and employee benefits.

In addition to taking part in the University orientation program, each new employee should meet with his or her supervisor, who will explain the responsibilities of the position, departmental policies, and procedures.

The new employee shall be responsible for reading and familiarizing himself/herself with the contents of the appropriate policy and/or procedures manuals at his/her institution.

1.3.1 Identification Card

Employees must obtain an UNG ID Card as soon as possible upon employment from the Card Services Offices. ID Cards can be obtained at Card Services.

Campus locations are:

Cumming: Information Desk

Dahlonega: Hoag Student Center, Room 104

Gainesville: Student Center

Oconee: Faculty Building

Blue Ridge: Dahlonega Campus, Hoag Student Center, Room 104

The UNG ID Card is the official University of North Georgia card that is used for identification purposes and for access to many facilities on campus. For a complete listing of card services, please visit the UNG Card Services webpage.

The UNG ID Card is the property of University of North Georgia and upon leaving the University employees are expected to return the card to their immediate

supervisor.

If the card is lost or stolen, employees must immediately deactivate the card and contact Card Services. The recipient of the card is responsible for all usage of the card prior to proper notification to Card Services. After the card has been reported missing to Card Services, a replacement card can be issued. There is a replacement fee for lost, stolen, damaged or unreturned cards.

1.3.2 Official Forms and Updates

New employees will be asked to complete forms for payroll and benefit purposes and will be responsible for the continuing accuracy of all information, including all criminal actions. As necessary, change of address, telephone number and tax withholding status can be completed via new change forms or a new W-4.

1.3.3 Participation in Teachers Retirement System (TRS), Optional Retirement Plans (ORP) or Georgia Defined Contribution Plan (GDCP)

Online election for membership in the Teachers Retirement System of Georgia (TRS) or one of the Optional Retirement Plans (ORP) must be completed. Employees eligible for the optional retirement plans have 60 days from their hire date to make an election. This election is irrevocable.

Georgia law requires that all state employees except student employees must be part of a public retirement system and take part in Social Security during their employment with University of North Georgia.

The State of Georgia has created a retirement plan for temporary employees called the Georgia Defined Contribution Plan (GDCP) to comply with this legislation. The employee contributes 7.5% of gross pay per pay period to the plan. The deduction is an after-tax deduction. Employees who are contributing to the TRS or Employees Retirement System (ERS) with another employer are not eligible for Georgia Defined Contribution Plan.

Temporary employees taking part in GDCP may request a refund of all contributions to the plan after 30 days of non-contribution. To request a refund, contact GDCP at 1-800-805-4609 or go online at www.ers.ga.gov. Set up an account and request a refund.

1.4 Provisional Period

1.4.1 Provisional Period for New Hires, Transfers and Rehires

Each new staff employee must serve the first six months of employment at the University of North Georgia in a provisional status. University System employees transferring to another University System institution, or the University System Office, are subject to a 6 month (180 days) provisional period upon beginning at the new location. During this time, the new employee can evaluate the University as a place to work. Likewise, the supervisor will evaluate the employee's job performance. If the employee's work performance is not satisfactory, the employee will be notified in writing during the six-month provisional period and the employee may be terminated at any time during the provisional period without the right of appeal.

Public Safety Department employees are subject to the same provisional employment requirement as other staff employees, except that the six-month provisional period will not begin until any person employed as a police officer has completed his/her mandated training for certification as a police officer. This special provision only applies to those Public Safety employees for whom specified training is mandated by state law and such training occurs after their employment.

Employees in the six-month provisional period are not eligible for transfer or promotion within the University during that period.

Employees who have successfully completed a provisional period and who are transferring to or being promoted into a new position within the same institution will not be subject to another provisional period. However, employees must serve at least 6 months (180 days) in a new position before becoming eligible for transfer or promotion.

Former employees who are terminated and then rehired will be considered new employees and will have another provisional period.

1.4.2 Benefit Status during Provisional Period

A new hire must be employed on or before the fifteenth of a month to qualify for accrual of vacation/annual leave for that month. Employees on provisional statuses, who are otherwise eligible, may enroll in benefit programs immediately, except where specified otherwise.

1.5 Reduced Hours

Occasionally, due to the needs of the University, employees may be required, with notification, to reduce the number of hours worked per week. In these instances, the employee will be given at least two weeks' notice when possible.

An employee may also request a reduction in hours. This request should be made to his/her direct supervisor. The supervisor should consult with Human Resources before answering the request.

1.6 Alternative Work Schedule

University of North Georgia offers flexible scheduling to staff. Flexible scheduling offers creative approaches to completing an employee's workload while promoting work/life balance. Standard working hours for the University are 8:00 a.m. to 5:00 p.m., Monday through Friday. All changes to this schedule require supervisor's approval.

1.7 Termination Guidelines

Supervisors should consult with Human Resources prior to initiating termination actions against an employee.

Upon review by Human Resources, supervisors may notify the employee of the terms and conditions of termination. If immediate supervisory action is required, supervisors may suspend the employee and notify Human Resources. A completed Personnel Action Form noting the dismissal and reason must be given to Human Resources.

Prompt submission of a Personnel Action Form is necessary to prevent employee over-payment. The Personnel Action Form is required to permit Human Resources to comply with the reporting requirements of the Georgia Department of Labor. When an employee quits without written notice, a telephone call or e-mail to Human Resources, pending submission of the Personnel Action Form, will help in preventing over-payments. If an employee's termination date is known in advance, a Personnel Action Form should be submitted at least five (5) days prior to the last day worked.

Upon termination for any reason, an employee shall be compensated in a lump sum payment for all unused accrued annual leave (up to a maximum of 360 hours). If any portion of an employee's compensation is funded by a grant or other funding sources, the terms set forth by the grant or funding partner will determine if the payout of vacation hours is allowed.

On the employee's last day, his/her supervisor is responsible for collecting all University property, including, but not limited to: ID and passwords, keys, parking permit, equipment, books, and any other University property.

1.7.1 Clearance/Exit interview

Employees who terminate employment must complete the UNG exit process. It is

the responsibility of the employee to assure the University that he/she does not have any outstanding obligations to the University. This process is normally completed on the last working day and includes, but is not limited to, returning ID, keys, parking permit, equipment, books, P-Card, and any other University property. It also includes updating employee contact information.

The employee must remove any University records on personal devices (iPhones, iPads, Android devices, home computers, pen drives, etc.) prior to separation.

If the exiting employee owes money to the University, North Georgia is authorized to hold accrued vacation pay to cover the obligation. If the exiting employee keeps UNG property unauthorized, UNG retains the right to hold the final paycheck until it is returned. **Important: if the employee does not complete the clearance process, any regular pay and vacation pay that is due to the employee may be delayed.**

A final paycheck will be deposited directly into the terminated employee's direct deposit account on record with payroll.

An Exit Interview with Human Resources is optional and should be requested by the employee in advance of their last day.

1.7.2 Reductions in Force

Some situations, such as lack of funding, lack of work, or reorganization may necessitate a reduction in force (RIF). When personnel reductions become necessary, affected employees will be given advance notice when possible so that they may seek employment elsewhere within or outside of UNG.

Staff employees who are terminated, demoted, or otherwise adversely affected by reorganization, redirection, program modification or financial exigency, as approved or determined by the University President or designee, are not governed by the procedures described in the Grievance Process.

1.7.3 Rehire after Termination

Former employees who are terminated for cause are not eligible for rehire. However, former employees who were terminated for cause may request Human Resources to review the case and determine eligibility for rehire.

1.7.4 Resignation

Resignation is voluntary relinquishment of employment by an employee. An employee should submit written notification of termination a minimum of two weeks prior to his/her last day worked to his/her supervisor, with a copy to

Human Resources. Before leaving, the employee must return all University property including keys, I.D. cards, etc.

1.7.5 Retirement

No staff member will be required to retire because of age.

The requirements for retirement under TRS can be found in the BOR Policy Manual, Section 800. Employees planning retirement are encouraged to discuss their plans with the Benefit Staff in Human Resources and their retirement provider well before their planned retirement dates.

1.8 Reporting of Fraud, Waste, Abuse and Harassment

University of North Georgia recognizes that an ethical, efficient, and effective work environment is essential to our continuing to successfully carry out our mission. As a result, we have always placed a high priority on assuring that each member of our University Community has the opportunity and means to convey any matter that could compromise that environment. Reporting through your supervisory chain often produces the most thorough and prompt resolution of a matter and is encouraged. However, other reporting avenues, such as the University Police, Human Resources, and Internal Audit, have been and continue to be readily available.

Of special concern are fraud, waste, abuse, and harassment, given that they directly impact our stewardship responsibilities and the well-being of individuals within our UNG Campus Community. We would encourage you to report any other significant issue as well through any of the methods available to you.

2.0 CLASSIFICATION AND COMPENSATION

2.1 Compensation

University of North Georgia's classification and compensation program for staff and administrative officers is administered by Human Resources. The program consists of pay plans and structures that are designed to group positions that have similar duties, levels of responsibility, skills, and educational requirements as the same general levels of pay.

The pay rates for each job title are determined by the knowledge, training, skills, and level of responsibility assigned to that position. In addition, every effort is made to ensure equitable salary ranges are in keeping with similar positions in the local, regional, and national markets.

2.2 B-Cat Classification System

The B-Cat system is based on general job categories linked to the Federal Integrated Postsecondary Education and Data System (IPEDS) job classifications. Every employee's job title is assigned a specific B-Cat Identification code. The B-Cat system uses a logic that assembles similar types of positions by function allowing institutions to "customize" their campus working titles and to build compensation programs appropriate to their own competitive job markets.

2.3 Pay Plan/Salary Structure

The Pay Plan/Salary Structure is a series of pay grades and pay ranges into which each title is assigned. The University utilizes a salary structure that provides UNG with a means of administering the salaries of its employees in a manner which is internally fair and equitable and externally competitive.

2.3.1 Salary Ranges

Salary ranges spread from the minimum salary to the maximum salary of the career level. Differences between one pay grade to the next are 7.5%; the range spread for each pay grade is 40%. All salary ranges have a minimum, midpoint and maximum. Incumbent salaries are to be administered within the established ranges.

The Standard Hiring Range is from the minimum of the first quartile to the first quartile of the pay grade. Exceptions may be requested for up to 10% above the first quartile for new hires with applicable experience and/or education beyond the minimum posted requirements:

Exception rates for new hires will not exceed rates paid to similarly qualified incumbents in the same classification with the same department or school.

The hiring department or school must be able to fund start rates greater than the minimum; the source of funds must be identified prior to any job offer.

Hiring supervisors who believe circumstances call for additional compensation above what was outlined may seek review and approval from Human Resources Classification and Compensation personnel. All offer letters for staff positions are initiated from Human Resources. No offer can be extended without prior approval from Human Resources.

Calculations for any additional compensation may be affected by official campus closings, official campus holidays, or an individual's paid time off during the pay period.

2.3.2 Employment Classification

All employee job titles at University of North Georgia are assigned a Fair Labor Standards Act (FLSA) status either exempt or non-exempt.

2.3.2a Exempt

Exempt status is assigned to positions that are not eligible for overtime pay as defined by the Fair Labor Standards Act (FLSA). Employees in executive, administrative, and professional positions are typically exempt under the FLSA and are paid a designated salary, regardless of the number of hours they work in a week. Such positions are hence “exempt” from the FLSA.

The University is not obligated under FLSA regulations to provide compensatory time to exempt employees. However, a supervisor may award compensatory time if it is decided that the situation warrants such an action. This practice should be consistent across the department and should not be on an hour-for-hour basis. Any time awarded but not used will not constitute a financial obligation to the University. An employee who has accrued comp time must request use of the time of his/her manager.

2.3.2b Non-Exempt

Non-exempt employees are subject to the provisions of the Fair Labor Standards Act (FLSA) and are eligible to be compensated for hours worked more than 40 hours per week. Employees that are assigned non-exempt status use the OneUSG Connect time and attendance system to record all hours worked. If a non-exempt employee works more than 40 hours in the workweek, they must be compensated accordingly. Generally, UNG grants compensatory time at a rate of time-and-a-half for hours worked over forty in one work week. In certain cases, overtime pay may be granted at the rate of time-and-a-half. Decisions on what method of payment are determined by departmental administrators and specific circumstances. Overtime must be approved in advance by the supervisor. Failure to obtain advance approval for overtime may result in disciplinary action. An employee who has accrued comp time must request use of the time from his/her manager.

Calculations for any additional compensation may be affected by official campus closings, official campus holidays, or an individual’s paid time off

during the pay period.

2.4 Employment Opportunities Posting

Human Resources maintains a current listing of vacancies on its web site. Employees are encouraged to use the web site as a resource for potential promotion or transfer opportunities. Interested employees may apply online for any position for which they are interested and qualified.

2.5 Minimum Qualifications

Minimum qualifications are intended to help ensure comparable basic hiring standards for comparable positions across campus. Minimum qualifications are the threshold of education and experience required to perform a given job. An individual with an education level and/or experience below the stated minimum qualifications for a job title is not considered minimally "qualified" for the position, and therefore not considered a viable applicant. Only viable applicants can be interviewed and selected for a position.

2.5.1 Transfer

An internal transfer is the movement of an employee from one position to another within the University usually within the same pay grade or from a State of Georgia agency or the University System to University of North Georgia.

Employees transferring to or from a State of Georgia entity or other institution in the University System of Georgia should consult with Human Resources regarding the transfer of their benefits and paid time. Employees transferring from one University System of Georgia entity to another are required to serve an additional 6-month probationary period.

2.5.2 Employment in Multiple Positions

Employees may be employed in only one full-time position or classification within the University System of Georgia at any given time. If an employee wishes to accept another position in addition to a current position at the University or within the University System of Georgia, the following rules will apply:

- ⦿ The combined work time for both positions cannot exceed 1.0 percent of full-time status (or 40 hours per week)
- ⦿ Both positions must be the same FLSA classification, either exempt or non-exempt
- ⦿ Acceptance of the second position must be approved by the employee's

department head and Human Resources

2.6 Pay Adjustments

2.6.1 Advanced Salary Increases Process

- Institutions may adjust employee compensation because of multiple factors to include merit adjustments, promotions, position reclassification, counteroffers, in-range adjustments, etc.
- Employee compensation adjustments are an institutional decision and should be consistent with the approved institutional compensation plan. However, cumulative fiscal year adjustments greater than or equal to ten percent above the USG's annual salary and wage guidance require advanced approval by the Chancellor other than the instances shown below.

The following salary increases greater than or equal to ten percent above the USG's annual salary and wage guidance do not require the Chancellor's approval:

- Results in a salary below \$100,000.
- It is a promotional increase at or below the mid-point of the salary grade for the new job classification.
- Is for a faculty member moving into an administrative role, in which the salary will convert from a ten-month salary to a 12-month salary, as long as the institution has a consistent formula for faculty administrative appointment salary rate conversions.

2.6.2 Merit Increases

The University recognizes and rewards individual performance by awarding merit increases. The funds available for merit increases vary from year to year depending upon budgetary constraints set by state legislators, the University System of Georgia and identified marketplace and economic conditions. The University System of Georgia develops merit increase guidelines that establish ranges for individual merit increases based on performance criteria. University of North Georgia then decides how merit increases will be administered and awarded to employees.

2.6.3 Promotion

A promotion is the shift of an employee from one job title or position to another having more responsible duties or involving more skill (higher classification). To

be promoted, the employee must meet the minimum job qualifications required by the new job title or position.

Promotional increases will be granted based on:

- ⦿ Salaries of incumbents in similar jobs in the work group to ensure internal equity.
- ⦿ The incumbent's qualifications including any related prior experience, skills, contributions, and potential.
- ⦿ The size of the promotion

Typically, a promotion increase will be decided using the established guidelines for determining starting salaries. In no case will an increase be granted which would place an incumbent's salary below the minimum.

2.6.4 Additional Compensation

Additional compensation is appropriate when an individual is assigned, in writing, a major component of a job at a higher pay grade and is held accountable for the full scope of the job on a temporary basis (this includes temporary assignment necessitated by need). Additional compensation is appropriate only in limited situations as all employees are expected to fill in for their co-workers during vacations and other short-term absences without additional compensation. Supervisors should determine if a stipend or additional temporary compensation is warranted. The amount of temporary compensation should typically be up to 10% or as determined by Human Resources. Added compensation should not continue for more than 12 months.

Employees determined by the institution to be non-exempt, as defined by the Fair Labor Standards Act (FLSA) and performing duties outside of the employee's normal job responsibilities could qualify for overtime pay. Therefore, non-exempt employees should be paid the overtime rate if the employee physically works over 40 hours (about 1 and a half days) in the workweek.

If a position has changed over time or if substantive duties have been assumed that are beyond the scope of what might be considered for a position with that title, the position should be submitted for review to Human Resources via the template supplied on the Human Resources website.

If an FLSA exempt employee performs task(s) *during* the employee's regular work schedule that is(are) *not* part of the employee's normal job responsibilities, or temporary assignment job responsibilities, the employee must use annual leave for the portion of time during which the other task(s) is(are) performed.

Under no circumstances should an employee receive supplemental pay for a task while receiving regular compensation for the same time period.

Supplemental compensation does not add to earnings used for retirement calculations, and retirement deductions/contributions are not taken/made. However, each retirement plan (TRS, ERS, or ORP) has its unique definitions relative to earnings that are “pensionable” (subject to retirement calculations), and the retirement plan provider has the final determination as to whether earnings are pensionable. *The Supplemental Pay Procedure* process in the SSC SOP (PRA-PY-001-PR-001) provides guidance relative to determining if supplemental pay is earnable compensation (subject to retirement contributions) by the various retirement plans. Please consult the SSC for aid in making these determinations.

Employees receiving supplemental pay shall be paid said supplemental compensation via the institution’s payroll system. Supplemental compensation paid to employees who are on the institution’s payroll **shall not be** paid as per diem and fees or as stipends. Supplemental compensation is subject to withholding per Internal Revenue Service and appropriate state taxing agency regulations.

2.6.5 Lateral Transfer

A lateral transfer is defined as a movement from one position to another at the same pay grade. A lateral transfer normally does not result in a change in salary since the assignments are in the same pay grade with the same salary range.

2.6.6 Demotion

A demotion is defined as a reassignment from one position to another position at a lower pay grade or salary range. A demotion can also be defined as a reassignment of duties to a lower level of pay or responsibility even if there is not a change in the employee’s job title or position.

Involuntary demotions may occur if work is eliminated, abolished, or reorganized, as a disciplinary action or if a staff member is unable to perform the work satisfactorily. The salary and classification for an individual who is involuntarily reassigned will be determined by Human Resources.

2.7 Job Evaluation Process

The University’s job evaluation process is designed to maintain consistency in the use of various job titles. This process ensures that employees performing similar duties have the same or similar job titles with corresponding pay levels. The job

The evaluation process requires a comparative analysis of a position to determine if the current classification and/or compensation levels are appropriate. The job evaluation process also includes the review of required knowledge, skills and abilities needed to perform duties assigned to a position. A review of current market data may be required during the job evaluation process as a means of obtaining the University's goals in:

- ⦿ Attracting and keeping qualified individuals by matching job skills with the assigned position.
- ⦿ Ensuring that internal and external equity issues are addressed.
- ⦿ Encouraging professional growth for employees; or
- ⦿ Recognizing necessary knowledge and skills required for a position and ensuring the employee is appropriately compensated for performing them.

2.7.1 Position Review Process

The position review process is the job evaluation process used for position reviews. The process includes a formal review by Human Resources and is used to:

- ⦿ Classify a new position.
- ⦿ Review a vacant position; or
- ⦿ Review incumbent position for update of duties
- ⦿ Any other reviews (i.e., FLSA review, market analysis, etc.)

The process for position review, whether it is a new position or a reclassification, initially begins with the submittal of a position description form found on the Human Resources website. Classification and Compensation personnel will review for appropriate title and requirements, then benchmark for appropriate pay grade and salary range. Classification and Compensation personnel will report back to the requesting area with results and prepare to post vacant positions or solidify changes to existing position incumbents.

2.7.2 Job Analysis and Job Audit

A position only needs to be reviewed if its duties have changed significantly over time, or if substantive new duties have been assumed that are beyond the scope of what might be expected for a position with that title.

If an employee believes their position should be reviewed for reclassification, the employee should discuss the possibility with their immediate supervisor. If the manager concurs, position review materials should be submitted to HR Classification and Compensation staff for review. Employees may be asked to help describe the duties they perform, so that the information fully reflects the current

scope of responsibilities. Position reclassifications involving incumbents will be considered for review twice a year, with the effective date being January or July, depending on the time the submittal is provided.

Human Resources will review the information provided and notify the manager of the classification review decision.

2.7.3 Desk Audit

If the initial results from Human Resources are in dispute by the requesting area supervisory chain, Human Resources may decide to perform a desk audit and interview the incumbent (if any) and the supervisor of the position. Desk audits can help clarify tasks performed and levels of responsibility. If, after the desk audit process is complete, the requesting department and classification/compensation personnel remain in disagreement, the Associate Vice President of Human Resources may review to assist in final determinations.

2.8 Administrative Salary Adjustments

Certain rare and exceptional circumstances may occur from time to time that warrant special salary adjustments. Such adjustments are not part of the normal compensation plan. Requests for special salary adjustments should be made to the Associate Vice President for Human Resources. Human Resources will consult with the Division Vice President or President.

2.8.1 Interim and Acting Assignments

Temporary salary adjustments may be warranted when additional responsibilities are assigned on an interim or acting basis, or when an interim or acting appointment is made. These adjustments are subject to budgetary authorization and funding limitations as well as human resources review to ensure a temporary increase is warranted.

Reassignments as described in this policy shall normally be for no less than one month and no more than twelve months and shall only occur when the responsibilities being undertaken by the employee are those of another position that is vacant or because of temporary sufficient change in the duties and responsibilities of a filled position. A temporary pay increase may be made when a significant change in duties and responsibilities occurs. Such pay increases may only be made if funding is available. The pay increase should be consistent with additional responsibilities assigned and with institutional salary guidelines; and should be approved by the Chief Human Resources Officer or designee. The pay increase should generally be at least the minimum of the salary range for the

position for which the interim or acting appointment is made. The former rate of pay will be re-assigned when the interim or acting assignment is completed.

2.9 Deductions

2.9.1 Payroll Deductions

Each employee's paycheck will have specific deductions as required by law, University of North Georgia regulation and/or at the employee's request as listed below.

2.9.2 Required Deductions

- ⦿ Federal and State Income Taxes
- ⦿ Social Security (FICA), if applicable
- ⦿ Teachers Retirement System Contributions or Optional Retirement Plan Contributions
- ⦿ Georgia Defined Contribution Plan (for Temporary Employees Only)
- ⦿ Employee Parking Fee

University of North Georgia employees are required to pay for parking on each campus. The fee will be payroll deducted from all full and part time faculty and staff's regular paychecks.

12 Month Non-exempt staff – annual fee will be deducted between twenty-four pay checks.

10 Month Non-exempt staff - annual fee will be deducted between twenty pay checks.

12 Month Exempt faculty and staff - annual fee will be deducted between twelve pay checks.

10 Month Exempt faculty and staff - annual fee will be deducted between ten pay checks.

Below are the fees based on employee status:

Faculty/Staff Parking Fee

<u>Employee Type</u>	<u>Annual Fee Amount</u>
FT Faculty 10 & 12 Mo	\$200
FT Staff	\$200
PT Faculty (Non/partially benefitted - less than 30 hrs)	\$100
PT Staff (Non/partially benefitted - less than 30 hrs)	\$100

Graduate Students

*

Student Workers

*

**Already pay Student Parking Fee and should utilize student parking spaces only.*

2.9.3 Optional Deductions (This list is not all inclusive):

- ⊙ Tax-Sheltered 403(b) retirement contributions
- ⊙ 457 Deferred Compensation Plan
- ⊙ Insurance premiums
- ⊙ Annual Fund campaign gifts
- ⊙ Flexible Spending Account contributions (Unreimbursed Medical or Dependent Care)

All temporary employees employed by UNG are exempt from Teacher Retirement System contributions and Optional Retirement Plan contributions and are not eligible for insurance benefits but are required to contribute to the Georgia Defined Contribution Retirement Plan unless already contributing to or receiving benefits from either TRS or ERS with another employer.

2.10 Garnishments and Withholding

The University considers the acceptance and settlement of just and honest debt to be a mark of personal responsibility. The University is required by law to accept and process garnishments served by court officials. Failure to meet financial obligations causes discredit to the University. Repeated instances of default in the payment of debt are sufficient grounds to terminate employment from the University System of Georgia.

The University is authorized to hold paychecks and/or deduct from regular paychecks or vacation pay amounts owed by its employees for any fine, fee, penalty, or other financial obligation to the institution.

2.11 Pay Periods

2.11.1 Time Reporting

Provisions of the Fair Labor and Standards Act require that non-exempt employees record hours worked per work week per pay period. The official work week for all non-exempt employees begins at 12:01 a.m. on Saturday and ends at 12:00 a.m. the following Saturday. Hours worked more than forty per week will be compensated at one and one-half times the hourly rate or compensatory time off.

OneUSG Connect software is used to record and track time and attendance. Non-

exempt staff must record hours worked each day in OneUSG Connect, as well as sick, vacation and holiday hours taken to be paid. Exempt employees must use OneUSG Connect software to report exception time (sick, vacation, etc.) to be paid. Falsification of or failure to record time may result in failure to get paid and/or disciplinary action including termination.

ALL TIME RECORDS MUST BE APPROVED BY BOTH THE EMPLOYEE AND AN AUTHORIZED REVIEWING AUTHORITY.

2.11.2 Paychecks

Non-exempt employees are paid bi-weekly, with payments made every other Friday. Any pay adjustments not reporting to Payroll Services in time for processing in the current payroll will be reflected on the next paycheck. Insurance premiums are deducted out of the first two paychecks of each month but will be adjusted by payroll as needed to collect any amounts due.

Monthly staff are compensated on the last working day of each month that includes premium deductions as needed.

2.11.3 Direct Deposit

It is mandatory that all employees activate direct deposit for their payroll transactions. Direct deposit will ensure your net pay is deposited into your selected account(s) on the payment date. This mitigates the risk associated with lost or late paychecks that often require a week or ten days to be replaced.

University of North Georgia provides for the direct deposit of pay to any participating bank or credit union in the country. Direct deposit enrollment or changes can be completed online using the OneUSG Connect Self-Service portal.

If you are unable to obtain a bank account for direct deposit, please contact Human Resources for assistance.

2.11.4 Report of Absence

Exempt and non-exempt staff must record and report all absences through OneUSG Connect. Falsification of or failure to record time may result in failure to get paid and/or disciplinary action including termination.

3.0 BENEFITS

3.1 General Benefits Information

University of North Georgia offers benefits eligible employees the opportunity to

participate in various benefit plans provided by the Board of Regents and/or University of North Georgia, that include but are not limited to health insurance, dental insurance, vision insurance, life insurance, accidental death and dismemberment insurance, disability income insurance, life insurance, dependent life insurance, pre-tax saving flexible spending accounts (health, dependent care) and retirement plans.

The University contributes toward the premiums for health, basic life and matches retirement contributions based upon terms set by the Georgia Legislature.

Human Resources provides each eligible employee with complete descriptions and comparisons of the available benefit plans, along with the respective monthly premiums. For specific information on the available benefit plans, please refer to the Human Resources webpage.

3.2 Benefits Eligibility

Employees must be appointed to a position that has an expected duration of at least six months and is at 75% FTE (30 hours) or more to be considered "benefits eligible". Employees must be appointed to a regular position scheduled for 50% FTE (20 hours) or more to participate in the TRS or ORP retirement plans.

3.2.1 New Employees

New benefits eligible employees may enroll in available benefit plans within the first 30 days of employment without a medical underwriting review.

Employees who do not enroll in benefit plans within the first 30 days of employment must wait until the annual open enrollment period to enroll or until a qualifying event takes place (see section 3.8.1). Employees should be aware that some plans only offer enrollment within the first 30 days of employment which may be their only opportunity to enroll in certain benefits. Also, enrollment in certain benefit plans during the Open Enrollment period may be based on a medical underwriting review's approval.

3.2.2 Eligible Dependents

Eligible dependents include the spouse and dependent children up to age 26 for medical insurance. If a dependent becomes medically disabled prior to the age of ineligibility, he/she may continue as a dependent with medical certification. A marriage license, birth certificate, or other document establishing a dependent relationship is required as a condition of dependent coverage. Upon completion of benefit enrollment, documentation verifying proof of eligible dependents status must be provided to the benefits vendor within 30 days of hire date for the



dependent(s) to be covered under the plan(s).

3.3 Health Insurance

Employees who are benefits eligible have 30 days from their benefits eligibility date to select a medical plan from the various plans offered. Every fall the University offers an open enrollment period during which employees may change their healthcare plan elections and/or levels of coverage.

The University pays a coverage percentage of the total cost of the monthly health premium. The employee must pay the remaining portion of the premium through payroll deduction. Premiums for medical insurance are withheld from the payroll check on a pre-tax basis.

3.4 Dental Insurance

The University provides voluntary dental programs for all benefits eligible employees. The employee pays 100% of the monthly insurance premium and the premium is withheld from the payroll check on a pre-tax basis.

3.5 Accident Insurance

All regular classified employees under age 70 who are benefits eligible may choose supplemental life with accidental death and dismemberment insurance. The employee pays 100% of the monthly insurance premium and the premium is withheld from the payroll check on an after-tax basis.

3.6 Life Insurance

3.6.1 Group Life Insurance

The University pays the full cost for \$25,000 of basic life insurance for all benefits eligible employees.

3.6.2 Supplemental Life Insurance

Eligible employees may purchase supplemental life insurance in increments of up to eight times their annual salary. The premiums are based on the age of the insured and the amount of coverage selected. This is optional coverage and is paid entirely by the employee with after-tax premiums.

3.6.3 Spouse and Child Life Insurance

Eligible employees may also insure their dependents (spouse and children). Spouse



life coverage is offered in increments of \$10,000 up to a maximum of \$500,000 and the cost is based on the spouse's age and the amount of coverage you choose. Up to \$50,000 coverage of spouse life does not require medical underwriting for newly eligible employees. Amounts more than \$50,000 will require completion of a medical questionnaire and approval from the vendor before coverage becomes effective.

You may select coverage for your dependent children in amounts of \$5,000, \$10,000 or \$15,000 of coverage guaranteed, no medical underwriting required.

3.7 Disability Income Insurance

Full time benefits eligible employees may choose to purchase Short-term disability upon hire without evidence of insurability if enrolling within 30 days of hire. If enrolling during an Open Enrollment period, evidence of insurability will be required and an approval by the vendor before coverage becomes effective. Benefits begin on the 15th day of a qualifying disability and continue for a maximum of 11 weeks. STD provides a benefit of 60% of your weekly earnings to a maximum of 11 weeks.

Full time benefits eligible employees may choose to purchase Long-term disability upon hire without evidence of insurability. Benefits begin on the 91st day or at the end of your STD benefits. No long-term benefits are payable under this plan for 12 months for any disability due to a condition in which the employee had any medical treatment, consultation, care, or services, took prescription medication or had prescription medication prescribed in the 3 months prior to enrollment in this plan. LTD provides a benefit of 60% of your monthly earnings to a maximum of \$15,000 per month.

Please view the Short and Long Disability Summary Plan Descriptions located on the Human Resource page of the USG website under Benefits concerning the reduction of disability benefits due to age and receiving other benefits.

Benefits are provided if the employee continues to be medically certified as disabled, up to retirement age.

Premiums for optional long-term and short-term coverage are deducted after tax.

3.8 Section 125 Plan – Flexible Spending Accounts

University of North Georgia participates in a Section 125 Plan as authorized by the Internal Revenue Code.

Employee health, dental, vision and flexible spending account premiums are deducted on a pre-tax basis and are not subject to federal tax, state tax and/or FICA. The choices made

by a new employee or during the annual open enrollment period must remain in effect for the entire plan year (January 1 – December 31), unless the employee has a mid- year qualifying event (refer to section 3.8.1).

The annual open enrollment period normally occurs during the months of October and November with coverage dates effective January 1 of the following calendar year.

3.8.1 Qualifying Events for Mid-Year Changes

The IRS regulation, under Section 125, has strict rules regarding the operation of these plans. Exceptions are allowed under IRS rules when a member has a mid-year qualifying event. Employees are required to notify Human Resources within 30 days of the qualifying event through the benefit vendor and supply any requested documents to the vendor. Some examples of mid-year qualifying events include:

- ⦿ Change in marital status
- ⦿ Birth or adoption of a child
- ⦿ Death of a covered dependent
- ⦿ Loss of eligibility status by a covered dependent
- ⦿ Change in employment status that affects eligibility for coverage
- ⦿ Loss or gain of healthcare coverage eligibility under Medicare or Medicaid
- ⦿ Change in residence to a location outside of a healthcare plan's service

3.8.2 Transfer of Benefits to another Unit within the University System of Georgia

Employees transferring to another USG institution with accrued vacation of twenty or fewer days (160 hours) must transfer to the new unit all accrued vacation. For employees with accrued vacation of greater than 20 days (160 hours), an employee may choose one of the following options:

- ⦿ Transfer of the total accrued vacation balance, not to exceed 45 days (360 hours); or
- ⦿ Receive payment from the former institution of accrued vacation leave more than 20 days (160 hours). The total accrued vacation leave for which the employee may be paid shall not exceed 25 days (two hundred hours)

An employee must transfer all accumulated sick leave if there is no break in service.

3.9 Continuing Benefits Plans after termination.

Terminating employees will keep insurance benefits through the end of the month that they terminate, provided the full premiums have been paid. Under the Consolidated Omnibus Budget Reconciliation Act (COBRA), employees may choose to continue medical, dental, vision, and/or flexible medical spending account for up to 18 months. In special instances, the 18-month period may be extended. Participation in the FSA ends if you terminate employment. Only expenses incurred prior to the date your participation in the plan ends are eligible for reimbursement. Claims for expenses incurred prior to the plan termination date must be submitted within the “run out” period. COBRA election must be made within 60 days from the date COBRA notification is received by the employee. Payment of COBRA premiums must be paid in full before coverage is reinstated.

3.9.1 Disabled Status

If a qualified beneficiary is determined to be disabled under Title II or XVI of the Social Security Act at the time employment ends and the plan administrator is notified within 60 days, the qualified beneficiary may choose benefit continuation for up to a total of 29 months following the termination of employment.

3.9.2 Dependents

The spouse of an employee whose coverage ends due to divorce or a child who reaches the maximum age for coverage as a dependent may continue coverage for thirty-six (36) months. Election must be made within sixty (60) days from the date COBRA notification is received. Payment of COBRA premiums must be paid in full and on time each month or COBRA coverage will be discontinued.

3.10 Tuition Assistance Program (TAP)

Participation in the Tuition Assistance Program shall be available to full time, benefits eligible employees who have successfully completed at least six months of employment in a benefits eligible position as of the date of the Tuition Assistance Program application deadline for the desired academic semester.

Employees who wish to take advantage of the TAP program must qualify as a student prior to TAP application submission.

Each “teaching institution” will establish its TAP employee registration period. This period will begin a minimum of three (3) days immediately prior to the first day of classes to enroll in TAP available classes. The specific dates for the employee registration period at each “teaching institution” are available here: [USG TAP Employee Registration Dates](#). To receive the waiver of tuition and mandatory fees, employees must register only during the designated employee TAP registration period for your institution of choice. If you register for classes prior to the employee TAP registration period, you

risk the chance of your classes being dropped, losing your TAP waiver, or added late fees.

Tuition Assistance Program participation will be granted on a space available basis. Full time employees, who meet the applicable admissions standards and who have received appropriate prior authorization from their institution, may enroll in up to nine academic semester credit hours for each of the three designated semester periods: fall semester, spring semester, and summer semester.

Employees may not enroll in certain programs or courses of study under the TAP policy. Go to the University System of Georgia, Human Resources, Benefits, Tuition Assistance Program (TAP) tab in the left side bar to see which courses are eligible.

The federal government currently allows up to \$5,250 annually, in employer-provided educational assistance benefits, to be “tax free” to TAP participants. This applies to both undergraduate and graduate-level courses. An employee must pay taxes on employer-provided educational assistance benefits of more than \$5,250. This amount will be included in your wages (Box 1 of your Form W-2). A tax professional should be consulted for further information concerning taxable tuition.

For complete policy, please visit this link: [Tuition Assistance Program](#).

3.11 General and Professional Insurance

The University, as a unit of the University System of Georgia, provides limited liability insurance protection to its employees while in the conduction of the business of the University. This insurance covers employees’ legal liability to others for personal or bodily injury and property damage resulting from actions or inactions of an employee of the University System of Georgia acting within the scope of his or her employment. The The Office of the Attorney General will defend the employee from such claims under most circumstances.

3.12 Retirement Plans

All employees, excluding student employees and part-time, under certain circumstances or temporary employees, must be part of a state sponsored retirement program. Benefits eligible University of North Georgia employees must enroll in either the Teachers Retirement System of Georgia (TRS) or the Optional Retirement Plan (ORP) within 60 days of employment. This election is irrevocable. ORP eligible employees who do not make an election within 60 days default into the Teachers Retirement Plan of Georgia. (Refer to section 3.12.3 and 3.12.4).

Temporary employees must participate in the Georgia Defined Contribution State Plan

(GDCP). When employment ends with UNG, the temporary employee, if they so choose, may request a refund of all the contributions made to the Georgia Defined Contribution Plan.

3.12.1 Social Security

Terms, conditions, requirements, reservations, benefits, privileges, and other conditions of Title II of the Social Security Act, as amended, apply to all employees of the University System except those specifically excluded under the agreements with the Employee Retirement System of Georgia.

3.12.1a Employees Covered by Social Security

All employees eligible for the Teachers Retirement System of Georgia and Optional Retirement Plan are covered by Social Security.

3.12.1b Employees Subject to the Medicare Portion of Social Security Only

The following employees are subject to the Medicare portion of Social Security only:

- ⦿ Temporary, seasonal, or intermittent employees who are employed at an hourly rate of pay, including part-time instructors.
- ⦿ Regular employees working less than half-time (19 hours per week or less)

3.12.1c Employees Not Covered by Social Security

Non-resident aliens may be exempt from Social Security deductions, in accordance with their visas. All non-resident aliens must undergo a UNG tax analysis before claiming exemption from social security.

3.12.2 Georgia Defined Contribution Plan

Temporary employees contribute 7.5% of their wages to the Georgia Defined Contribution Plan (GDCP) that is the State equivalent of Social Security. For complete policy please visit Employees' Retirement System of Georgia website.

Employees terminating with University of North Georgia may complete a refund request of their Georgia Defined contributions. To request a refund, contact GDCP at 1-800-805-4609 or go online at www.ers.ga.gov. Set up an account and request a refund.

3.12.3 Teachers Retirement System of Georgia

The Teachers Retirement System of Georgia (TRS) is a defined benefit plan. Employees enrolled in this plan must make contributions as a percentage of gross salary. The contribution rate may change each fiscal year. Employee contributions are deducted from salary before federal and state income taxes (pre-tax dollars) are paid on contributions. Employees pay FICA (OASDI and Medicare) on contributions just as on any other salary. Federal and State of Georgia income tax is deferred until the account is withdrawn or retirement benefits are received.

Employees who leave the University before retirement are advised to investigate their options regarding TRS funds. All withdrawals of funds (not including rollovers) are subject to additional tax and penalties. To request TRS refunds, employees must use the TRS website.

3.12.3a Vesting

Vesting in the Teachers Retirement System occurs after ten (10) years of service. Service may also be purchased for teaching in the public schools of Georgia, State of Georgia employment, birth-related leave, and study leave. Up to five years credit may be obtained for service in the armed forces of the United States during periods of national emergency. After six years of Georgia service, credit may be purchased for out-of-state teaching in public schools or colleges. The formula for the purchase of out-of-state credit is one year of out-of-state service for each additional year of Georgia service up to a maximum of ten years.

3.12.3b Eligibility for Retirement

Eligibility for retirement is governed by the Teachers Retirement System of Georgia and the Board of Regents. The Board of Regents policy reference can be found in the Board of Regents of the University System of Georgia Policy Manual, Definition of a University System of Georgia Retiree and Eligibility for Retirement Section 8.2.8.

3.12.3c Early Disability

Permanent disability retirement is available at any age if the TRS member has at least 10 years of service.

3.12.4 Optional Retirement Plan (Regents Retirement Plan)

The Optional Retirement Plan is available to exempt faculty and staff. Employees enrolled in this plan must make contributions as a percentage of gross salary. This

contribution rate is applicable regardless of the source of salary. Employee contributions are deducted from salary before federal and state income taxes (pre-tax dollars) are paid on the contributions. Employees pay FICA (OASDI and Medicare) on contributions as with any other salary. Federal and State of Georgia income tax is deferred until the account is withdrawn or retirement benefits are received.

Contributions may be distributed among various funds offered. Members may change fund selections on a regular basis as per fund rules via the Retirement@Work platform.

Employees eligible for the optional retirement plan have 60 days from their hire date to make an election. If no election is made, participation will default to the Teachers Retirement System Plan. This election is irrevocable.

3.12.4a Vesting

Vesting in the Optional Retirement Plan is immediate. Since vesting is immediate, the total funds, including the state's contributions, remain in the member's name for his or her retirement.

If the member becomes permanently and totally disabled or dies, all monies in the fund, including the State's contribution and appreciation or depreciation of the funds, would be made available to the member or the named beneficiary.

3.12.4b Eligibility for Retirement

Eligibility for retirement is governed by the Board of Regents. The Board of Regents policy reference can be found in the Board of Regents of the University System of Georgia Policy Manual, section 8.2.8-- Definition of a University System of Georgia Retiree and Eligibility for Retirement.

3.12.5 Voluntary Supplemental Retirement Accounts

University of North Georgia provides voluntary retirement programs to eligible employees. These programs allow employees to set aside additional funds for retirement on pre-tax basis.

3.12.5a Tax-Sheltered Plans 403(b)

Most employees* are eligible to participate in a voluntary tax-deferred plan offered through UNG under provision 403(b) of the Internal Revenue

Code (IRC). This plan allows participants to direct a portion of their income, on a pre-tax or after-tax basis, into any of a number of investment vehicles such as annuity contracts and mutual funds. Employees make the full contribution, via salary reduction (there are no employer contributions). Employees may enroll or change their elections for the 403(b) plan at any time, including during the annual benefits open enrollment period.

A variety of retirement companies offer investment options. Information is available from Human Resources.

3.12.5b Deferred Compensation Plans 457(b)

University of North Georgia offers a voluntary deferred compensation plan under provision 457 of the Internal Revenue Code (IRC). This plan allows employees to defer a portion of their income, on a tax-sheltered basis, into any of a number of investment vehicles. Taxes are deferred until the money is withdrawn. Unlike a 403(b) plan, withdrawals at times other than retirement do not carry an additional penalty. Employees make the full contributions, via salary reduction (there are no employer contributions). Employees may enroll or change their elections for the 457 plans at any time, including during the annual benefits open enrollment period.

Employees may participate in both the 403(b) and the 457 plans.

*Tax treaties disallow non-immigrant foreign nationals who work in the U.S. from excluding such contributions from their taxable income, so there is no tax advantage to participation.

3.13 Flexible Spending Accounts

University of North Georgia offers programs that allow individuals to set aside funds on a pre-tax basis for certain healthcare, dependent care expenses. Depending upon the program, employees may reduce their salaries by an amount up to \$2,700 per year for medical and \$5,000 for dependent care.

3.13.1 Healthcare Flexible Spending Account

The healthcare flexible spending account may be used to cover the cost of medical, dental, and related expenses that are not otherwise paid by other insurance (i.e., medical, drugs, dental plan co-pays, and deductibles and qualifying out-of-pocket medical and dental expenses that fall outside your plans' coverage). Employees may enroll within 30 days of being hired or after a qualifying event or during the annual

benefits open enrollment period. To participate in the Healthcare Spending Account, employees must re-enroll each plan year.

Note that setting up a Healthcare FSA can save employees substantial tax dollars on predictable medical costs. However, employees are forewarned - **any unspent funds left in the account after the end of the plan year are forfeited per IRS rules.** The plan year is defined as January 1 through December 31. Expenses incurred during the plan year can be submitted for reimbursement until March 31 of the following year.

3.13.2 Dependent Care Flexible Spending Account

The dependent care flexible spending account may be used to cover the cost of qualifying childcare, eldercare, or care of other legal dependents. Employees may enroll within 30 days of being hired or a qualifying event, or during the annual benefits open enrollment period.

Note that setting up a Dependent Care FSA can save employees substantial tax dollars on predictable costs. However, employees are forewarned - **any unspent funds left in the account after the end of the plan year must be forfeited per IRS rules.**

Under the law, the combined dependent care contributions of both parents cannot exceed the maximum allowable election set by the IRS (currently \$5,000.00).

3.14 Georgia Higher Education Savings Plan

Employees may participate in the Georgia Higher Education Savings Plan through payroll deduction. The program, known as a 529 Plan, allows employees to set aside money for higher education expenses - for their children, grandchildren, or other beneficiaries of their choice (including themselves). Under current law, any earnings grow tax-free in the account and are tax-free when withdrawn and used for education purposes. Employees who participate in the program may also be eligible for a state tax credit for such contributions.

Participation in the Georgia plan does not mean that the beneficiary must attend college in Georgia. The fund may be used for qualified higher education expenses at accredited postsecondary institutions across the country. Accounts can be opened with as little as \$15 and have high allowable total limits (more than \$200,000). A variety of investment options are available. To learn more about the program, visit State of Georgia, Path2College 529 Plan website.

3.15 Appealing Denied Benefit Claims

Denied benefit claims must be contested directly through the benefits provider such as Blue Cross/Blue Shield.

3.16 Employment after Retirement

When an individual retires from the University System of Georgia and is receiving benefits from the Teachers Retirement System, the Employees Retirement System, or the Regent's Retirement Plan, he/she shall not be reemployed by the University System without the prior approval of the Board of Regents. When an employee has retired from the University System of Georgia, he/she may be reemployed by the University System of Georgia under the following conditions:

1. The reemployment of a University System of Georgia retiree must be approved by the Board of Regents.
2. A rehired retiree must have a minimum break of one month between the effective date of his/her retirement and the effective date of his/her reemployment.
3. The work commitment of a rehired retiree must be less than half-time (i.e., less than 50%).
4. The salary that is paid to a rehired retiree must be
 - a. less than 50% of the annual benefit-based compensation amount that he/she was earning at the time of his/her retirement, with consideration for the average merit increase percentages that have been applied since the employee retired, or;
 - b. Less than 50% of the average compensation for the position into which the retiree is being hired based on the institutions' existing compensation plan, or, if not applicable, the average compensation of existing or previous incumbents, or;
 - c. Less than 50% of a reasonable market competitive rate for the position into which the retiree is being rehired as determined by the institutional chief human resources officer.
5. The salary that is to be paid to a rehired retiree must be consistent with his/her work commitment.

4.0 VACATION, SICK LEAVE AND LEAVE OF ABSENCE

4.1 Time-Off Benefits

These benefits are provided to eligible employees of the University in recognition of their need to be off the job for a variety of reasons, including rest and enjoyment, jury/witness duty, illness, etc. The University provides a generous and comprehensive time-off benefits program.

Eligible employees must have personal leave time available to be compensated for any

day missed. Employees who do not have personal leave time available are in a “Leave Without Pay” (LWOP) status. If UNG does NOT elect to place the employee on LWOP and the employee is not experiencing a Family Medical Leave Act (FMLA) qualifying event, his/her employment with the university will be terminated.

An employee who must be absent or tardy is expected to observe university or work group notification standards and complete a leave request form at the earliest possible opportunity. Complete rules for using Holiday and Leave Time can be found in UNG Policy “B&F-HR – Holidays and Leave.”

4.1.1 Holidays

University of North Georgia observes thirteen official paid holidays each year. The holiday schedule is available on the Human Resources web site. Student assistants, graduate assistants, part-time instructors, and temporary employees are not eligible to receive holiday pay. Official University holidays are:

- New Year’s Day
- Martin Luther King Jr. Day
- Memorial Day
- Juneteenth Day
- Independence Day
- Labor Day
- Thanksgiving Day
- Friday following Thanksgiving
- Christmas Eve
- Christmas Day
- Winter Break (three floating holidays)

To receive pay for the holidays, an employee must be in paid status the day before and the day after the holiday. A terminating employee will not be paid for any official holiday occurring after the last working day of his or her employment. Note – Holidays listed above are subject to change. Please refer to the Holiday Calendar on the Human Resources website.

A normal workday at UNG is eight hours per day and holiday pay will be for eight hours and prorated for part-time employment. Hours credited for pay (holiday, sick, vacation), but not actually worked, will not be used in computing overtime/compensatory time.

4.1.2 Vacation

Vacation time must be approved in advance by the supervisor before it may be

taken.

4.1.2a Eligibility

Regular, full-time, and part-time benefits eligible employees are eligible to accrue vacation hours.

Full-time staff will accrue ten hours vacation per month for the first five years of employment. After the completion of the fifth year of service, vacation will accrue at 12 hours per month. Staff with ten or more years of service will accrue at 14 hours per month. Administrators and Administrative Faculty accrue 14 hours per month regardless of years of service.

Regular employees working 30 hours per week, but less than 40, earn and accrue vacation hours in an equivalent ratio to their percentage of time employed. Temporary employees, including student assistants, graduate assistants, part-time instructors, and regular employees who work less than one-half time do not earn or accrue vacation time.

An employee must be hired on or before the 15th of the month to accrue leave for that month. Leave is accrued on the last working day of the month. An employee must have a sufficient leave balance from prior months to cover the hours taken through the last day of the vacation.

Otherwise, the employee will be in a "Leave Without Pay Status."

4.1.2b Carryover of Unused Vacation Days

Unused vacation time will rollover each year; however, on December 31 of each calendar year, each employee's leave record shall be adjusted to reflect no more than 45 days (360 hours) of accrued vacation/annual leave.

4.1.2c Terminal Vacation Pay

All unused, accrued vacation/annual leave, not to exceed 45 days (360 hours), shall be paid to an employee upon his/her termination from employment. If any portion of an employee's compensation is funded by a grant or other funding sources, the terms set forth by the grant or funding partner will determine if the payout of vacation hours is permitted.

An employee who terminates on or after the fifteenth of a month shall accrue vacation/annual leave for that month.

4.1.2d Record of Earned Vacation

Accrued vacation and sick time can be viewed by logging in to the OneUSG Connect Self Service portal.

4.2 Sick Leave

4.2.1 Eligibility

Regular full-time and part-time benefits eligible employees are eligible to accrue sick leave hours. Full-time employees accrue eight hours of sick leave per month. Sick leave may be granted at the discretion of the institution and upon approval by the supervisor for an employee's absence for any of the following reasons:

- ⦿ Illness or injury of the employee.
- ⦿ Medical and dental treatment or consultation.
- ⦿ Quarantine due to a contagious illness in the employee's household.
- ⦿ Illness, injury, or death in the employee's immediate family (spouse, parent, brother, sister, child, stepchild, grandparent, grandchild, parent-in-law, son-in-law, daughter-in-law, foster parent, or legal guardian) requiring the employee's presence.

An employee must be hired on or before the 15th of the month to accrue leave for that month.

Leave is accrued on the last working day of the month. An employee must have a sufficient leave balance from prior months to cover the hours taken through the last day of the absence. Otherwise, the employee will be in a "Leave without Pay" status.

4.2.2 Annual Allowance and Accumulation

For all regular full-time employees, sick leave shall be accumulated at the rate of one working day per calendar month of service.

Benefitted part-time employees accrue at an equivalent ratio to their percentage of employment (i.e., 30-hour employees accrue at three-fourths the rate of full-time employees). There is no limit to the amount of sick time that an employee may accrue and carry into the next calendar year.

Temporary employees, including student assistants, graduate assistants and part-time instructors do not earn or accrue sick time.

4.2.3 Reporting Absences Due to Illness

Employees are expected to report all absences due to illness or injury directly to their supervisors or department heads as soon as possible and should indicate probable length of absence so that schedule adjustments may be made.

Employees absent for prolonged periods should communicate with their supervisors weekly unless on approved leave of absence through Human Resources. Supervisors should contact Human Resources when an employee is out for longer than three days because of illness or injury or immediately if the condition is serious, so that appropriate measures for leave of absence can be made.

4.2.4 Physician's Statement

If an employee is out of work due to illness for three consecutive days, a physician's statement is required upon return to work. Under some circumstances, supervisors may require an employee to provide a physician's statement for sick leave absences for less than three days. Consultation with Human Resources is required.

4.2.5 Physician's Return to Work Certification

Supervisors reserve the right to request a release from a physician to allow an employee to return to work.

Such certification is also requested of employees returning under the Family Medical Leave Act (FMLA) or workers' compensation injury (refer to sections 4.3 and 4.6).

4.2.6 Shared Sick Leave Program

The purpose of the Shared Leave Program is to provide a means for university employees to donate paid sick leave to a shared leave pool. The pool of donated leave is available to be used by fellow University employees who donate to the pool who are eligible for and require leave while experiencing a life-threatening or emergency medical condition. Use of leave from the pool keeps eligible employees from taking leave without pay during their time of crisis. All other earned leave, i.e., sick and vacation must be exhausted before approval to use time from the Shared Leave Program. Complete Shared Leave guidelines are on the Human Resources web site in the benefits section.

4.2.7 Sick Leave without Pay

Any employee unable to return to work after exhausting all accumulated sick

leave and accrued vacation leave may request leave without pay for a period not to exceed one year. Leave without Pay (LWOP) may be granted at the discretion of the President.

If additional LWOP is approved, the employee will have the option to continue his/her group insurance benefits while on leave. The institution will continue to pay its share of the cost for such period, and the employee must continue to pay his/her share of premiums.

If not already exhausted, this sick leave will run concurrent with FMLA. Beyond FMLA guidelines there is no job protection offered for this type of leave.

During an unpaid leave status, vacation and sick leave benefits will not continue to accrue.

4.2.8 Sick Leave for Terminating Employees

A terminating employee shall not be paid for sick leave earned but not taken. However, employees retiring may use accumulated sick leave to earn additional service time with Teachers Retirement System.

4.3 Workers' Compensation

All University employees are covered by state Workers' Compensation laws that may provide medical and income benefits if you are injured on the job. Workers' Compensation also provides benefits to your dependents if you die as the result of a job-related illness or injury.

Risk Management Services self-insures the Workers' Compensation Program for the State of Georgia. The program is administered through a contract with Georgia Department of Administrative Services by a third-party administrator.

The Workers' Compensation Program provides for monetary supplements for absences from work, as well as medical care through the Amerisys Managed Care Organization and other costs associated with job related injuries.

A part of the Workers' Compensation Program is "Georgia Focus," which is a three-tiered approach to the safety, care, and recovery of employees. The program places its focus on taking care of employees.

Georgia Focus Program Manual:

https://doas.ga.gov/assets/Risk%20Management/RTW%20Publications%20and%20Forms/RTW_GeorgiaFocus.pdf

Tier 1 is a proactive approach to the safety of employees through job hazard analysis, education, and corrective actions to hazardous conditions.

Tier 2 is a managed approach to the care of employees in the event of an injury. Through the Amerisys Managed Care Organization, employees who have suffered a job-related injury are provided timely and effective medical care. Timely reporting of injuries by the supervisor ensures injured workers are receiving prompt care and benefits to which they are entitled.

Tier 3 is a return-to-work team approach that focuses on an employee's ability as opposed to their disability. This approach enables the employee to return to work sooner and within their medical restrictions.

4.3.1 Work Related Injuries

In the case of an injury while performing job duties, notify your supervisor immediately and call Public Safety at 706-864-1500 and file an incident report. The Department of Public Safety will dispatch an officer who will assess the extent of the injury and the medical attention that is immediately appropriate. You are required to report all claims to Risk Management within 48 hours of the incident by calling (706) 864-1463 or emailing riskmanagement@ung.edu. You will be expected to cooperate with the claims process by providing all supporting documents as requested. This may include, but is not limited to incident reports, witness statements, correspondence, photographs, medical records, and bills. Should there be a need and if seen by a physician, all paperwork and or associated documentation should be provided to Risk Management within 48 hours.

Claims should only be reported by a supervisor. Employees cannot call in their own claims. Please see the [UNG Risk Management Workers' Compensation](#) website for the reporting phone number and procedures.

4.3.2 Workers' Compensation Return to Work Program

The University System of Georgia (USG) provides benefits for employees in the event of work-related injuries, illnesses, exposures, or accidents as the means to return employees to meaningful, productive employment following the injury or illness. When an injury, accident, exposure or illness is sustained as a result of, out of, or in the course of employment, all employees of the University System of Georgia shall be covered under provisions of the Worker's Compensation Act. Information USG's Policy has been summarized below, but is available in full via [USG HRAP – Worker's Compensation and Return-To-Work](#).

USG encourages injured employees to return to work as soon as it is reasonably possible in accordance with DOAS guidelines. Individual campus benefits departments should work with each employee and their department to develop opportunities to return to work in transitional capacities. A Return-To-Work Program includes an assessment/identification of duties that can be performed during a period of transition to allow an injured employee to work even though he/she may not be able to resume their full duties.

If the employee is not physically capable of returning to full duty initially, the Return-To-Work Program provides opportunities for offering the employee a temporary assignment in which the employee's regular position is modified: 1) to accommodate the employee's physical capabilities, or 2) to perform a transitional assignment with alternate duties. Assignment of any employee to a transitional position or modified regular position in accordance with the ReturnTo-Work Program, including determination of the pay rate for the transitional position, requires review and approval from the human resources department. In the case of a faculty member, the human resources department will work with the Vice-President for Academic Affairs to determine appropriate transitional work and compensation

An employee may not return to work without a physician's release to duty. When an employee returns to work, it is the responsibility of the supervisor to inform Human Resources immediately. Late notification of return-to-work status may result in incorrect payroll reporting for the employee.

4.4 Personal Leave

At the discretion of the President, personal leave without pay for a period of up to one year may be approved on a case-by-case basis and when such leave is deemed in the best interest of the institution. Approved personal leave allows the employee the right to elect to continue his/her group insurance benefits with institutional participation in the cost. No vacation or sick leave is accrued during an unpaid personal leave.

Employees must exhaust all earned vacation and sick leave before personal leave is used.

4.4.1 Benefits during Personal Leave

Approved paid leave allows for benefits to continue including the accrual of sick and vacation leave. Approved unpaid leave allow employee to retain their insurance benefits, but they will be billed by the benefit vendor for their portion of the premium request, and it will the employee's responsibility to pay the vendor directly.

Employees on unpaid leave will not continue to accrue vacation or sick leave.

4.4.2 Unapproved Personal Leave

An employee not at work must be in an approved leave status. When an employee is absent from work and has not made arrangements to be on official leave, disciplinary action up to and including termination may occur. Unapproved leave will be unpaid or charged to accrued vacation at the supervisor's discretion and approval from Human Resources.

4.5 Administrative Leave

Administrative leave is a leave of absence initiated by the University to deal with unusual circumstances in which it is desirable to continue an employee's association with the University for the period of the leave. Administrative leave may be with or without pay and carries no promise of future re-employment. Administrative leave requires the approval of the Associate Vice President of Human Resources.

4.6 Family and Medical Leave

The Family Medical Leave Act (FMLA) provides eligible employees with up to 12 weeks of unpaid, job protected leave each rolling 12-month period. A rolling 12-month period is defined as 12 months from the date of first absence. To be eligible, the employee must be employed for at least one year and have worked at least 1,250 hours over the previous 12 months.

4.6.1 Family Leave Entitlement

Events that qualify an employee for Family Medical Leave:

- ⦿ Birth of a child
- ⦿ Adoption of a child
- ⦿ Family member called to active duty
- ⦿ Employees who have a spouse, parent or child who is on or has been called to active duty in the Armed Forces when he/she experiences a "qualifying exigency."
- ⦿ Serious health condition of employee's child, spouse, or parent
- ⦿ Serious health condition of employee

"Serious health condition" means an illness, injury, impairment, or physical or mental condition that involves:

- ⦿ Any period of incapacity or treatment connected with inpatient hospital care (such as an overnight stay), hospice or residential medical care

facility.

- ⦿ Any period of incapacity requiring sporadic absences from work, school
- ⦿ Or other regular daily activities that also involves continuing treatment by (or under the supervision of) a health care provider; or
- ⦿ Continuing treatment by (or under the supervision of) a health care provider for a chronic or long-term health condition that is incurable or so serious that if not treated would result in a period of incapacity.

Eligible spouses who work for the same employer are limited to a combined total of twelve work weeks of leave in a 12-month period to share for the following FMLA-qualifying reasons:

- The birth of a child and bonding with the newborn child,
- The placement of a child with the employee for adoption or foster care, and bonding with the newly placed child, and
- The care of a parent with a serious health condition.

Under some circumstances, employees may take FMLA leave intermittently—that means taking leave in blocks of time or by reducing the normal weekly or daily work schedule. Where FMLA leave is for birth or placement for adoption or foster care, use of intermittent leave is subject to approval by UNG Human Resources. FMLA leave may be taken intermittently whenever it is medically necessary to care for a seriously ill family member or because the employee is seriously ill and unable to work.

Employees who have a spouse, parent, child or who have been named next of kin for a service member who incurred a severe injury or illness on active duty in the Armed Forces may take up to 26 weeks of leave to care for the injured service member.

4.6.2 FMLA Notice and Certification

Employees requesting FMLA must complete the University of North Georgia FMLA request form and submit it along with the University System of Georgia's FMLA Medical Certification form to Human Resources. The Medical Certification form includes a section for the health care provider to verify the existence of a serious health condition. In the case of a foreseeable leave, an employee is required to give at least 30-day notice prior to beginning FMLA. If the leave is not foreseeable, the employee is required to advise Human Resources as soon as practical. Whenever possible, the employee requesting FMLA should set up an appointment with Human Resources to provide required paperwork and make preparations regarding compensation and benefits. The employee will be notified of their eligibility within 5 days of receipt of the request of the

employee or when Human Resources receives notification that the employee's leave may be an FMLA qualifying event. The employee may be required to obtain a second or third medical certification, at the University's expense.

4.6.3 Paid vs. Unpaid Leave

When taking FMLA leave, employees may choose to use either accumulated sick and/or vacation leave based on the following criteria:

Sick leave **must** be used concurrently while employees are taking FMLA. Once all sick leave has been exhausted, University of North Georgia will charge leave to vacation unless the employee elects to freeze the vacation leave at any given point. Written notification from the employee to freeze time is required to stop the use of vacation leave to remain in a paid status. Once sick leave has been exhausted and vacation leave has been either exhausted or frozen, the remainder of the FMLA leave will be in an unpaid leave status.

4.6.4 Benefits Coverage during Leave

During the period of FMLA leave, an employee may retain health, dental, vision and life benefits under the same conditions that applied before the leave began. If an employee's share of insurance premiums cannot be deducted from his/her pay, the employee will be required to pay his/her share of insurance premiums each month while on leave. Failure to pay the employee share of the insurance premiums will result in loss of coverage.

4.6.5 Job Restoration

Upon return from FMLA leave, the employee will be restored to his/her original position or to an equivalent job with equivalent pay, benefits and other employment terms and conditions.

The employee's use of FMLA will not result in the loss of any employment benefit that the employee earned or was entitled to before using FMLA leave. In an unpaid leave status, however, the employee will not continue to accrue vacation or sick leave benefits.

4.6.6 Return from Leave

Employees should notify Human Resources of their return-to-work date at least five (5) business days or as soon as the employee knows, in advance of the return-to-work date. A statement from the employee's physician certifying that the employee is physically able to return to work, as well as the signed (by the

physician) employee's job description must be submitted to Human Resources prior to or on the employee's first day back to work. The employee is responsible for ensuring that the documentation is delivered to Human Resources either in person, via e-mail or facsimile for review. In some cases, the employee may be required to provide a fitness-for-duty certificate prior to being restored to active status.

If an employee wishes to return to work prior to the expiration of FMLA leave, notification must be given to Human Resources at least five (5) business days prior to the employee's planned return. Human Resources is responsible for notifying the employee's supervisor of the employee's status. The employee must provide medical certification that he/she is able to return to work earlier than expected.

4.6.7 Extension of Leave

An employee requesting an extension of FMLA leave due to the continuation, recurrence, or onset of his/her own serious health condition or of the serious health condition of the employee's spouse, child or parent must submit a request for an extension in writing to Human Resources. The maximum amount of FMLA leave that an employee may take during a rolling 12-month period is 12 weeks (or twenty-six work weeks in the case of caring for an injured service member related as spouse, son, daughter, parent, or next of kin). The employee must notify Human Resources as soon as it is determined that he/she will not be able to return from leave as originally planned. Human Resources is responsible for notifying the employee's supervisor of the employee's status.

4.7 Military Leave

4.7.1 Definition of Military Leave

Military duty, for the purpose of these regulations, includes any military duty in the service of the State of Georgia or the United States. This includes schools conducted by the armed forces of the United States.

4.7.2 Duration of Military Leave

Regular benefits eligible employees are entitled to up to 18 days of leave with pay while engaged in the performance of military duty and while going to and from such duty during normal working hours. The maximum length of military leave with pay is eighteen workdays (144 hours) in any one federal fiscal year or continuous period. The maximum leave time without pay allowable cannot exceed five years. To receive the annual military leave with pay, the employee must

provide a copy of his/her orders to Human Resources.

4.7.3 Benefits during Military Leave

At the expiration of maximum paid military leave time (18 days), continued absence by the employee shall be considered as military leave without pay. The employee may elect to exhaust accrued vacation leave hours prior to going on an unpaid leave status.

During the period of Military Leave Without Pay, an employee may retain health, dental and life benefits under the same conditions that applied before the leave began. If an employee's share of insurance premiums cannot be deducted from his/her pay, the employee will be required to pay his/her share of insurance premiums each month while on leave. Failure to pay the employee share of the insurance premiums will result in loss of coverage.

Any regular employee who is required to undergo a physical exam for Selective Service or military service is eligible for paid military leave if the exam is scheduled during normal working hours. The employee must submit the documentation of the exam request to his/her supervisor.

4.7.4 Return from Military Leave

The employee must provide advance notification to the department and Human Resources of the return-to-work date. Upon receipt of the notification, the individual will be reinstated on payroll if the individual was on leave without pay. Employees may be required to provide fitness-for-duty certification prior to being restored to active status.

Failure to return from leave for reasons other than a continued serious health condition may require the individual to repay the employer's contributions to healthcare premiums during the period the individual should have returned.

4.8 Parental Leave

In accordance with Georgia's Paid Parental Leave law the University provides up to a maximum of 240 hours of paid parental leave, during any 12-month period, to eligible employees for qualifying life events as defined in this policy. The purpose of paid parental leave is to enable the eligible employee to care for and bond with a newborn, newly adopted or newly placed foster child of the eligible employee. Parental leave runs concurrent with unpaid leave under the Family Medical Leave Act (FMLA).

So long as the use of paid parental leave does not unduly disrupt the institution's

operations, no institution shall interfere with, restrain, or deny an eligible employee's leave request associated with this policy. Additionally, no institution shall discharge or in any other manner discriminate or retaliate against any eligible employee for lawfully exercising the provisions of this policy.

Paid parental leave may be taken intermittently or continuously in increments as small as one hour. Unused paid parental leave has no cash value at the time an employee separates from the University, and unpaid parental leave that remains 12 months after the qualifying event will not carry over for future use. Complete policy information is available by referencing [USG HRAP – Paid Parental Leave](#).

Medical absences due to pregnancy and childbirth will be considered as any other medical leave time and FMLA and Sick Leave provisions apply. See Sick and/or Family and Medical Leave (FMLA) for further information.

4.9 Educational Leave

The President or Provost may grant educational leave without pay to full-time employees who have at least one year of service at the time of requesting leave. Educational leave may not exceed one year at a time and is to be used for obtaining a degree or professional certification. Such approved leave allows the employee the right to elect to continue his or her group insurance benefits at the same employee rate the individual paid through payroll deduction. The employee will be required to pay his/her share of insurance premiums directly to the provider each month while on leave since payroll deduction will not be available.

4.10 Educational Support Leave

Full-time, benefits eligible employees shall be eligible for up to eight hours of paid leave per calendar year for the purpose of promoting education in this state, in accordance with [USG HRAP - Education Support Leave](#). Eligible employees must receive approval from their supervisor before utilizing this leave, and only activities related to student achievement and academic support will qualify. Education support leave is not charged against any other leave. Education support leave does not accumulate or rollover and is not paid-out upon change of employment status.

4.11 Death in the Family

Benefits eligible employees who have a death in the immediate family may be allowed to use accrued sick leave for absences related to the death. Sick leave granted to employees more than five days for a death in the employee's immediate family requires a memorandum from the supervisor explaining the circumstances. The immediate family in this instance includes the employee's spouse, parents, children, siblings, stepchildren,

grandparents, grandchildren, foster parents and legal guardian, and in-laws.

Non-benefits eligible employees may be granted time off due to a death in the family. However, since such employees do not accrue sick or vacation leave, the leave will be unpaid.

4.12 Court Duty Leave

The University of North Georgia follows the University System of Georgia's HRAP on [Other Leave \(Voting and Court Duty\)](#), also referenced in [BOR Policy 8.2.7.7, Other Leave](#).

UNG recognizes an employee's obligation to appear when summoned for court duty and shall grant leave with pay to regular fully benefited employees for the purpose of serving on a jury or as a witness. Confirmation of appearance may be requested.

Employees may retain juror or witness fees paid by the court. An employee appearing in court related to a personal matter will not be granted leave with pay but may take vacation, if available. An employee serving as an expert witness must take vacation time and it must comply with the "Outside Activity Policy" (See Section 1.0.7).

4.13 Voting Leave

The University of North Georgia follows the University System of Georgia's HRAP on [Other Leave \(Voting and Court Duty\)](#), also referenced in [BOR Policy 8.2.7.7, Other Leave](#).

Employees who need time off from work to vote in local, state or national general elections or primaries are eligible for up to two (2) hours of paid leave at the beginning or end of their regular workday. Employees who are scheduled to begin work at least two (2) hours after the polls open or end work at least two (2) hours before the polls close are not eligible for voting leave. As with any foreseeable absence, employees should request and obtain approval from their supervisor in advance of taking time off to vote and should schedule the time off in a manner that minimally disrupts normal agency operations.

4.14 University Closing

In the event of inclement weather or any emergency that jeopardizes the safety of employees, the President or designee of the President may declare leave with or without pay. In the event inclement weather or other emergencies require closure or delay the opening of the University, official notifications will be made via the following mechanisms.

Primary notification methods:

- ⦿ UNG's Connect-Ed emergency notification system. Students, faculty, and staff may register their contact information via Banner or by email to emeralert@ung.edu.
- ⦿ The University's web page. Specifically, www.ung.edu/emergency.
- ⦿ Email from the Office of University Relations and/or the Office of Public Safety.

Secondary notification methods:

- ⦿ Official UNG social media:
 - UNG Facebook page – www.facebook.com/UNG.UniversityofNorthGeorgia
 - UNG Instagram account – <https://www.instagram.com/uofnorthgeorgia/?hl=en>
- ⦿ Local media outlets to include, but not limited to:

<u>Radio</u>	<u>Television</u>	<u>Newspaper/Internet</u>
WDUN- 550	WSB-TV	AccessNorthGA.com
AM/102.9 FM	WXIA-TV	The Gainesville Times
WNGC-106.1 FM	WGCL-TV	Forsyth County News
WGAU 1340 AM		Dawson County News
WSB radio 95.5		Athens Banner-Herald
FM/750 AM		Atlanta Journal-Constitution

5.0 WORKPLACE PRACTICES

5.1 Work Schedules

The normal workweek for a full-time, regular employee consists of 40 hours per week. Employees may, on occasion, must work more than 40 hours per week. In these instances, advance notice will be provided when permissible. Non-exempt employees will be compensated for the hours worked more than 40 hours per week in accordance with the Fair Labor Standards Act. Work hours and days are determined by the needs of the office and will be communicated to the employee by the supervisor. There may be an instance when the needs of the University dictate a change in schedule. This change will be communicated to the employee by the supervisor with at least a two week notice where possible. The University reserves the right to change work schedules

as necessary to meet changing departmental needs.

5.1.1 Attendance

Each employee, exempt and non-exempt, is expected to adhere to their scheduled hours. If the employee is unable to report to work as scheduled for any reason, the employee should promptly notify his/her supervisor. It is not sufficient to leave a message with a co-worker nor should the notification be made by a friend or family member except under emergency situations. Such notification should be made as far in advance as possible. Failure to give the appropriate notification may result in disciplinary action up to and including termination.

In addition, punctuality and regular attendance are key factors in consideration for job retention and advancement. Abuse or improper use of leave entitlements, including falsification of reasons for leave requests, will be grounds for disciplinary action, up to and including dismissal from employment.

5.1.2 Breaks

Breaks are a privilege granted by each individual supervisor and are not a right. The needs of the job must be satisfied before breaks can be granted. If the work situation permits, the supervisor may authorize a.m. and p.m. breaks of up to 15-minutes in duration. Employees on break may leave the work area.

In departments where it is necessary to always have someone on duty, it is the employee's responsibility to ensure that work assignments are covered to the approval of the supervisor. Therefore, in some areas, breaks are not possible.

Employees may not forego breaks to accumulate extra time off in the future or to make up for tardiness or previous absence. Breaks may not be skipped to leave early or come in late and cannot be added to the lunch break. These rest breaks are with pay.

5.2 Employee Records

Human Resources maintains for each employee a personnel file that contains vital employment information. To ensure that personnel records are up to date, it is the employee's responsibility to promptly notify Human Resources of any changes in name, home address, telephone number and emergency contact. Notification of change in dependents, marital status or beneficiary changes can be initiated through OneUSG Connect but will require additional documentation for completion. To respond to emergencies and to provide employees with important notices relating to salaries, benefits, and other

matters, it is important that the University have current and accurate records. Employees must keep their personal data current with Human Resources and as necessary provide written documentation to Human Resources.

5.2.1 Access to Employee Records

The Georgia Open Records Act is a state statute that requires that public records be open and available for inspection within three (3) business days of receipt of the request. Any Open Records Act requests received by a university official (faculty, staff, or administrator) must be responded to within three (3) business days or the University official may be penalized under the provisions of the law. There are some exceptions to the Open Records Act (e.g., medical records, student educational records, etc.). Any requests received should be forwarded immediately upon receipt to the Director of Risk Management & Compliance for response on behalf of the University.

5.2.2 Disclosure of Information

As a service to employees, Human Resources will furnish third parties outside the University dates of employment at the University and an employee's title or position. In instances where payroll information is requested (e.g., salary information for the purpose of obtaining a car loan), Human Resources will confirm but not furnish salary. If the requesting party requires specific information, they will be advised that such information will only be made available with the written consent of the employee.

5.3 Employee Health and Safety

The University of North Georgia is committed to achieving excellence in providing a safe working and learning environment and supporting environmentally sound practices in the conduct of institutional activities. UNG complies with applicable environmental and occupational safety laws and regulations. In the absence of specific laws or regulations, UNG follows industry standards and good management practices.

The prevention of accidents and the promotion of safety are the responsibility of everyone in the University community. Everyone is encouraged to be alert and report any unsafe practices and conditions that may present an imminent danger to individuals or property. Employees should report these types of conditions to their immediate supervisor or to the Office of Environmental Health and Safety.

Environmental Health and Safety provides support to the University in all areas of environmental and chemical safety including chemical and other hazardous materials. If there are any concerns, employees are encouraged to contact Environmental Health and

Safety.

5.3.1 Emergency Treatment

In the event of a serious or life-threatening emergency on any campus, notify University Police at 706-864-1500 or dial 9-1-1.

5.3.2 Campus Safety and Security Fire and Emergency Services

In the event of a fire or evacuation, every employee should follow the fire safety evacuation route and vacate the premises until the officials in charge declare the premises safe to enter. Exits and areas around fire extinguishers must be always kept clear. Periodic fire safety inspections and drills are held to test equipment and procedures. For questions about fire safety, contact University Police.

5.3.3 University of North Georgia Public Safety

The [University of North Georgia Police Department](#) provides a full range of police and ministerial services 24-hours a day, seven days a week on the Dahlonega and Gainesville Campuses. On the Cumming and Oconee Campuses, officers are assigned to patrol whenever school is in session and has agreements with the surrounding law enforcement agencies. The Blue Ridge Campus is patrolled by the Fannin County Sheriff's Office and supported by the UNG Police Department. The UNG Public Safety Communications Center may be reached at 706-864-1500 to report an on-campus incident or emergency.

5.3.4 Georgia Public Employee Hazardous Chemical Protection and Right to Know Act of 1988

To comply with the Georgia "Public Employees Hazardous Chemical Protection and Right to Know Act of 1988" a written hazard communications program has been established for the University of North Georgia.

The State of Georgia Public Employee Right to Know Act ensures that all public employees are accorded certain rights regarding hazardous chemicals in their workplace. Employees have both a need and a right to know the identities and hazards of the chemicals they use on the job. Please visit Environmental and Occupational Safety website.

The University of North Georgia Right to Know coordinator is employed in the Department of Environmental Health, Safety. For further information, please call (678)717-3434 or visit the department website.

5.3.5 EAP/Faculty and Staff Assistance

An Employee Assistance Program (EAP) is available at no cost to University of North Georgia faculty, staff, eligible dependents, and household members. The EAP is a third-party service, available 24/7, that offers confidential consultations, assessments, and short-term counseling for a variety of issues ranging from work-related concerns to personal difficulties that affect everyday life. EAP representatives are not employees of the University and the University does not receive details of services provided.

Employees and supervisors are encouraged to utilize EAP services whenever they feel it may be beneficial. Advanced approval through a supervisor or Human Resources is not necessary. Supervisors may make referrals to the EAP program for those individuals experiencing performance issues at work. These referrals should only be made in conjunction with HR.

For additional information you may refer to the [UNG Employee Assistance Program](#) on the Human Resources website or contact Human Resources directly at (706)864-1440.

5.4 Use of University Services and Property

The University strives to maintain the highest standards of personal and business ethics and professional conduct. As an employee, you are required to do the same. Your daily activities on behalf of the University should always be conducted in an ethical and legal manner and conflicts of interest should be avoided.

5.4.1 North Georgia Stationery

UNG stationery is intended for university business and must not be used by employees for personal or non-University correspondence.

5.4.2 Mail and Packages

For procedures for university mail please visit the [UNG Postal Services](#) website.

5.4.3 Visitors

It is expected that employees will not receive personal visitors during working hours on a regular basis.

5.4.4 Children in the Workplace

The University cannot accommodate children of employees and students on campus during normal operating hours. Children are welcome to make brief visits and to attend scheduled events.

5.4.5 Business Activities

Employees who supplement their earnings by the promotion or sale of products and services do so entirely on their own initiative and without implied approval or endorsement by the University. All such activity, including sampling, soliciting orders and deliveries must be conducted entirely outside of working hours and entirely outside of university property.

5.4.6 Pets/Animals on Campus

Health, safety, and courtesy reasons preclude the presence of pets in the workplace except for approved service animals. For additional information, please review UNG's [Animals on Campus Policy](#).

5.4.7 University Equipment

Electronic mail, voice mail, fax machines and copiers should be used for official UNG business only. Employees should understand that electronic mail and voice mail messages are not secure and therefore should not be assumed to be private.

5.4.8 Operation of State-Owned Vehicles and Rentals

It is mandatory that every state employee responsible for driving a state-owned vehicle or a rental for business purposes complete the annual Motor Vehicle Training. This training can be found on the UNG Risk Management website. A driver's history is required to be ran and kept on file as part of the training. A review of the Motor Vehicle Policy and safety tips are required.

5.4.9 Appropriate Usage (Computer/Telecommunications)

Respect for intellectual labor and creativity is vital the University of North Georgia. Because electronic information is volatile and easily reproduced, respect for the work and personal expression of others is especially critical in computing and networking environments. The University's expectation is all information technology resources are utilized in a reasonable manner, respecting the public trust through which these resources have been provided, the rights and privacy of others, the integrity of facilities and controls, state and federal laws, and USG policies and standards. Access to the University's information systems is a privilege and is to be treated with the highest standard of ethics. Violations of

authorial integrity, including plagiarism, invasion of privacy, unauthorized access, and copyright violations may subject an employee to disciplinary action up to and including termination as well as possible legal action. All violations of this policy shall be reported to Human Resources.

5.4.10 Check Cashing and Cash Advances

Check Cashing

Faculty and staff in good standing may cash personal checks up to \$50 without prior authorization by presenting a valid UNG ID. Two-party checks are not accepted. Personal checks more than \$50 may be permitted but will require approval from the Bursar or an assigned representative. Checks may be cashed at the below locations:

Bursar's Office -

Dahlonega Campus: Downtown Office Building, Suite 203

Gainesville Campus: Administration Building, Room 155

Cash Advances

Cash advances are issued to employees for travel expenses for the University. It is important to note that any advances not cleared within 60 days of the issue date will be collected as a payroll deduction.

5.4.11 Employee Parking at UNG

All faculty and staff are required to register for an annual UNG virtual parking permit (which is paid through payroll deduction); up to three vehicles may be added. Faculty and staff should park in spaces designated as "F/S" or "F/S 24/7", which are located throughout all UNG campuses and near most UNG buildings. Faculty and staff are also welcome to use the UNG Shuttle system that exists on the Dahlonega and Gainesville campuses. For more information regarding UNG Parking Codes, how to obtain a virtual permit, or other questions please contact Parking Services at the following locations:

Parking Services

(706) 864-1697 – Dahlonega, Blue Ridge, and Cumming

(678) 717-3914 – Gainesville or Oconee

For additional parking information, please refer to the Auxiliary Parking Services [Vehicle Registration](#) page.

6.0 STAFF DEVELOPMENT

6.1 Performance Reviews

University of North Georgia has established a system of performance evaluations for all exempt and non-exempt faculty, staff and administrative employees. All shall be evaluated based on the merits of their performance and qualifications. These evaluations may be used for making decisions regarding transfer, promotion, demotion, retention, supervisory assistance, employee training and development and for consideration in salary determination.

All staff are evaluated by the immediate supervisor or department head on an annual basis no less frequently than in 12-month intervals. Faculty evaluations are conducted in alignment with [BOR 8.3.5.1](#) and the Faculty Annual Evaluation Policy referenced within [UNG Faculty Handbook 7.1](#).

6.2 Training and Development Programs

The University recognizes that training and development programs improve individual and organizational performance and help the University achieve its overall institutional goals. Employees should develop, with their supervisors, plans to enhance skills and prepare for continually evolving responsibilities in their positions.

Since professional development is part of all employees' performance expectations, supervisors should plan for and allow release time from work for training programs determined to be mutually beneficial for employees and the University. Such release time should be granted to employees in a fair and equitable manner, regardless of experience, educational background, or job title.

7.0 INTERNAL PROBLEM RESOLUTION

7.1 Problem Resolution

Employees are encouraged to participate in an informal resolution process. The informal resolution process may be utilized by consulting with an employee's supervisor, Employee Assistance Program (EAP), and the University's Ombudsperson. For info on Faculty procedures see the Faculty Resources Tab within the Academic Affairs website. If any of these processes are not successful, or the employee feels the matter needs to be escalated, the employee may initiate a formal complaint through Human Resources. (See Section 1.0.5)

8.0 EMPLOYEE PERFORMANCE AND CONDUCT

8.1 Performance Evaluation and Development Planning

The primary purpose of performance evaluation and development planning is employee development through structured interaction between manager and employee. The program is designed to maximize quality of performance at UNG by measuring performance, creating development plans, and providing a basis for salary recommendations under the UNG merit pay policy. This program is applicable to all regular non-faculty and regular non-teaching faculty employees at UNG. An accurate job description should always be used as the basis for performance evaluations. Evaluations and development plans must be specific and meaningful for both the employee and his or her manager, who share the responsibility for a successful process. The UNG Performance Evaluation Form should be used by the evaluator in evaluating his/her direct staff.

8.2 Performance Evaluation Process

The job performance of each University of North Georgia staff member should be appraised:

- ⦿ During the provisional period 6 month (180 days) for new University employees; and
- ⦿ Once a year for all employees outside of their provisional period. Graduate Assistants, Student Assistants and Student Workers are excluded.

The Evaluation Process:

- A. During the month of February (or within 30 days after hire for employees hired after February), each manager should meet individually and privately with each of his or her employees. During this meeting, the manager and employee discuss the employee's job responsibilities and what levels of performance will be expected for the year. The manager provides to the employee a copy of the employee's Job Description (if the employee does not have a copy) and review elements the annual performance evaluation. Expected performance should be specific and consistent with the Department's current strategic plan.
- B. At the end of the performance period (typically during the month of February), managers evaluate each of their employees on their performance during the previous calendar year, utilizing multiple sources of performance data including manager observations, solicited and unsolicited peer evaluations, and comments from colleagues and associates. Evaluation information is input into the OneUSG ePerformance system by both the supervisor and employee, and should be reviewed and discussed by both parties. Annual evaluations become part of an employee's personnel file.

- C. If another manager supervised the employee for a significant part of the period of evaluation, input from that manager should be obtained and utilized in preparing the evaluation.
- D. If the overall performance rating is “unsatisfactory” the employee must participate in a Performance Improvement Plan.
- E. If the current manager has not supervised the employee for at least 90 days, the performance evaluation should be accomplished by the second-level manager or by the previous UNG manager.
- F. Senior administrators may be evaluated on an academic year basis (instead of a calendar year basis) if their managers wish to do so. In those cases, performance evaluations and development planning should be held in July or August.

Performance evaluations are conducted annually through the OneUSG platform and will be announced by Human Resources along with training opportunities for completion.

Employees have 30 days from the date of signature on the evaluation to include any comments with the evaluation.

8.2.1 Interim Evaluation

Supervisors are encouraged to give continuous and ongoing feedback to employees as it relates to their performance. Supervisors are also encouraged to conduct at least one interim performance evaluation during the evaluation period. This evaluation does not have to be formal but should provide feedback to recognize and reinforce positive performance, to identify areas needing improvement and to develop an improvement plan when necessary.

The annual performance evaluation should not be the first and only time each year that an employee hears feedback on his/her performance.

8.3 Conduct Guidelines

CODE OF CONDUCT

As a University of North Georgia employee, you are expected to demonstrate reasonable effort and productivity as well as adhere to published rules and regulations and to accept customs and standards of courtesy, conduct, and cooperation. The following are examples of actions which are unacceptable to the University, and which may result in disciplinary action or discharge. This is not to be considered an all-inclusive list:

- Failure or being unfit to perform assigned duties.
- Commission/Conviction of a felony or crime involving moral turpitude.
- Bringing discredit to the University.

- Insubordination.
- Negligence.
- Falsifying records, reports, or information.
- Theft.
- Misuse of telephone or computer services.
- Intoxication or drinking on the job.
- Failure to report an absence or reason for an absence.
- Taking unauthorized leave.
- Habitual absence or tardiness.
- Discourteous or disruptive behavior.
- Unauthorized absence from assigned work area.
- Interfering with the work performance of another employee.
- Wasting materials.
- Willfully damaging equipment or property.
- Willfully violating safety regulations.
- Gambling.
- Sleeping while on duty.
- Using or selling drugs on university premises.
- Job Abandonment.
- Willfully violating law or policy prohibiting discrimination.
- Any other misconduct interfering with performance of duties.
- Violation of University procurement card or purchasing policies.

8.3.1 Job Abandonment

When an employee does not report to work for three consecutive, scheduled workdays and does not communicate with the department as to his/her whereabouts or intentions regarding the job, the employee may be terminated for job abandonment.

8.3.2 Personal Appearance

University of North Georgia is a varying environment, and it is difficult for the university to have one uniform dress code. However, University of North Georgia is a professional organization with an elevated level of visibility in the community. Discretion in style of dress and behavior is essential to the efficient operation of the University. Employees are, therefore, required to dress in appropriate attire and to behave in a professional, business-like manner. Questions about appropriate attire and behavior may be directed to the employee's supervisor.

8.3.3 Work Environment Appearance

Employees are required to keep their work environments clean and orderly and all equipment in good working condition.

8.4 Progressive Discipline

The Progressive Discipline process is designed to be constructive and corrective while promoting employee success. It gives employees the information necessary to understand aspects of work performance, attendance and/or behavior that are unacceptable, identifies the improvements that are expected and provides the opportunity for employees to demonstrate the expected improvements. The goal is to improve performance, attendance, or behavior and to assist employees in taking ownership in these areas.

It is the responsibility of the employee to adhere to the expectations outlined by the supervisor and by the university.

It is recommended that all employees be provided an opportunity to go through the progressive discipline process; however, there may be circumstances that warrant immediate termination. In addition, there is no required number of instances that a supervisor must warn or reprimand an employee before termination is warranted.

8.4.1 Progressive Discipline Steps

It is recommended that department management document all steps of the corrective discipline process as they occur, as well as warnings of further corrective action if the unacceptable performance and/or behavior is not corrected. In each step, department management is advised to state the next step to be taken if the performance does not improve. However, in cases of serious misconduct, the employee may be immediately terminated or suspended from the work force.

When an employee's performance or behavior is unsatisfactory, a progressive process is strongly advised. The steps involved in the process may include verbal discussion, written warning, suspension without pay or termination. Any disciplinary step may be omitted depending upon the severity of the incident. It is encouraged that supervisors contact Human Resource for assistance with the Progressive Discipline process.

Verbal Disciplinary Action

The initial disciplinary action should be verbal whenever possible. The discussion should be firm but fair and ensure that the employee clearly understands the established standards and expectations with respect to the unacceptable performance or behavior.

A written record of the date and content of such discussions should be maintained by the supervisor.

Written Disciplinary Action

Verbal disciplinary action of an employee that does not result in needed improvements, or if the initial situation indicates a need for stronger action, the next step is a formal discussion followed by a written disciplinary warning to the employee. The written warning outlines the undesired behavior, states expectations, and lists consequences if issues continue.

Human Resources is available to assist department management with the warning letter. Copies of the warning letter should be maintained in the appropriate departmental file, and a copy should also be sent to Human Resources to be placed in the official employee file.

Suspension Without Pay Action

Suspension without pay follows a verbal or written disciplinary warning if the desired results have not been accomplished or in situations where the employee's conduct warrants more serious consequence. The length of the suspension should depend upon the facts of each case, (e.g., type and severity of the behavior, previous work record of the employee and previous disciplinary actions).

The suspension should be clearly explained in a written disciplinary warning to the employee and should indicate any consequences of further performance, attendance, or behavior issues. Whenever possible, Human Resources should be contacted before this action is taken. If it is not reasonable to contact Human Resources beforehand, the supervisor should contact Human Resources afterwards with detailed information and to ensure appropriate adjustments are made regarding pay.

Dismissal Action

Dismissal is advised when, among other reasons, an employee has engaged in serious misconduct, or an employee has not corrected performance and/or behavior.

Prior to dismissing an employee, department management must review the situation and related information with Human Resources and supply

appropriate documentation.

If Human Resources approves the dismissal, it is advised, when possible, that the dismissal be communicated both verbally and in writing. The written letter of termination should include the reason for termination, effective date, applicable information regarding termination from the University. Human Resources can provide guidance on composing the letter of dismissal.

Information regarding eligibility for rehire may be found through review of the [USG HRAP - Eligibility for Rehire](#).

GLOSSARY OF TERMS

Absenteeism – work time lost when employee does not come to work as scheduled.

Administrators and Administrative Faculty – President; Vice President; Associate Vice President; Provost; Associate Provost; Dean; Associate Dean; Librarians.

Allocated Position – an established position funded through the budget process.

Alternative Dispute Resolution - includes dispute resolution processes and techniques that fall outside of the government judicial process.

Americans with Disabilities Act – Federal law prohibiting discrimination against a qualified individual with a disability; also known as ADA.

Applicant - someone who a) expresses an interest in a position, b) completes the required application process, and c) meets the minimum hiring standards for the job; and d) at no point in the selection process prior to receiving an offer of employment, removes himself/herself from further consideration or otherwise indicates that he/she is no longer interested in the position.

Base Hourly Rate – the hourly rate corresponding to the annual salary range assigned to an employee.

Break in Service - A break in service occurs when an employee has a break in employment within the University System of Georgia, State of Georgia Agency and/or any affiliate of either.

Budgetary Unit – describes a department, center or an office that has a budget.

Classification – positions that have similar duties and responsibilities are assigned the same descriptive title and the same requirements as to education, experience, knowledge, and ability.

COBRA (Consolidated Omnibus Budget Reconciliation Act) – Federal law that provides for continuation of group healthcare benefits for former employees and their families.

Continuous Service – shall mean service commencing with the employee's hire date and continuing until broken by termination.

Cost-of-Living Adjustment (COLA) – pay adjustment given to employees regardless of their performance; usually linked to inflation.

Date of First Benefitted Employment – the date used to mark the beginning of regular, benefitted employment with UNG. This date is used to determine leave accruals.

Demotion – a decrease in the duties and responsibilities assigned to an employee and a downward change in his/her classification and salary range.

Disability Benefits – monthly benefits paid under the Social Security Act to workers and eligible dependents or paid through a disability plan offered by UNG.

Employee Right-to-Know Law – Occupational Safety and Health Act (OSHA) standard that requires the use of labeling, Material Safety Data Sheets, training, written hazard communication programs to inform employees of hazardous chemicals in the workplace.

Employment Date – the date an employee was employed by UNG.

Exempt Employee – An employee that meets the FLSA requirements for exemption to overtime pay.

FLSA - Fair Labor Standards Act - regulates employee overtime status, overtime pay, minimum wage, record keeping and other administrative concerns and designates which jobs/positions are tracked and paid on an hourly basis and those that are paid on a salary basis.

FMLA – Family Medical Leave Act - entitles employees to take up to 26 weeks of unpaid leave each rolling 12-month period to care for a family member or because of a serious health condition of the employee.

403(b) Plans – financial plan to contribute pretax dollars toward retirement savings allowed to employees of certain tax-exempt organizations. University employees may have a 403(b) in addition to their required retirement plan.

Full-Time Employee – employee shall perform job duties forty (40) hours per calendar week.

Garnishment of Wages – a creditor obtains a court order requiring an employer to attach an employee's earnings to pay back a debt.

Georgia Defined Contribution Plan - created by the 1992 Georgia Law, Act 996 and became effective on July 1, 1992; also known as GDCP. The administration and responsibility for the GDCP is under the Board of Trustees of the Employees' Retirement System (ERS). The purpose of this law was to provide a retirement system for temporary, seasonal, and part-time employees of the State of Georgia who were not eligible for membership in the Employees' Retirement System (ERS) or the Teachers Retirement System (TRS).

Grievance Procedure – a process to resolve employee grievances.

Group Term Life Insurance – insurance carried by employers for their employees that provides a lump-sum payment to the employee's beneficiaries.

HIPAA (Health Insurance Portability and Accountability Act) – Act intended to improve health-care coverage portability and accessibility.

Holiday – one of 12 specific days identified by University of North Georgia within the calendar year as an official day off with pay for regular employees.

Immediate Family - Defined as spouse, parent, brother, sister, child, stepchild, grandparent, grandchild, parent-in-law, son-in-law, daughter-in-law, foster parent, legal guardian.

Job Abandonment – Job abandonment is a form of resignation, and the employee may be released without application of the policy and procedures on discipline and dismissal.

Job Analysis – a systematic study of jobs to determine what activities and responsibilities they include, relative importance and relationship with other jobs, qualifications necessary for performance of jobs and conditions under which work is performed.

Job Description – a summary of the most key features of a job, including minimum hiring standards, required tasks, knowledge, skills, abilities, and responsibilities.

Job Posting – a public display of current open positions so interested and qualified employees may apply.

Lateral Transfer - a movement from one position to another at the same pay grade.

Minimum Requirements – minimum level of knowledge (through education or training), skills and abilities that are required to perform the essential job functions assigned to a position.

Non-Exempt Employee – a job status established by the FLSA as an hourly waged employee. any hours worked over 40 hours must be paid overtime at a rate of time and a half unless the staff member prefers compensatory time at the rate of time and a half.

Ombudsperson - A designated neutral party who provides confidential and informal assistance for resolving University-related concerns, especially those that are not being adequately addressed through usual procedures; the ombuds is independent of the University's formal administrative structure and will consider all sides of an issue in an impartial and objective manner; the ombuds cannot impose solutions, but will identify options and strategies for resolution.

Optional Retirement Plan (ORP) – The Optional Retirement Plan (ORP) of the University

System of Georgia is a legislatively established retirement plan that was enacted in 1990. The ORP is a defined contribution plan qualified under the applicable provisions of Code Section 4.01(a).

Overtime – time worked by a non-exempt employee above the normal forty (40) hour work week.

Part-Time Employee – an employee who works less than 40 hours a week.

Performance Evaluation – the process that documents the degree to which an employee accomplishes work requirements and performance standards.

Performance Management – the process that provides an opportunity for employees and supervisors to discuss development goals and create plans to achieve them.

Performance Standards – expectations of management translated into behaviors and results that employees can deliver.

Personal Leave Balance – Unexpended vacation and sick leave as well as compensatory time balances that are available to an employee at a given time.

Preferred Qualifications – qualifications that are “ideal” for an applicant to have, but are not necessary to perform the essential job functions (or duties assigned to a position).

Progressive Discipline – A process designed to identify employee performance or behavior that falls below expectations and to outline constructive and corrective actions to promote employee success.

Promotion – an increase in the duties and responsibilities assigned to an employee and an upward change in his/her current job classification and salary range.

Provisional Period – the period in which each new employee is required to serve the first six months of employment at the University System of Georgia.

Qualifying Event – A qualifying event may necessitate mid-year changes in benefits status or enrollment. Examples of qualifying events may include adoption or birth, death of a dependent, dependent's loss of full-time student status, divorce, marriage, or job status change for spouse.

Reclassification – a change in the duties and responsibilities assigned to an employee and a change in his/her current job classification.

Regular Employee – an employee of the University who is hired for continuous service.

Resignation - voluntary relinquishment of employment by an employee.

Rolling 12-Month Period – A twelve-month period marked at the beginning by a request for leave of absence and ending at the end of the succeeding twelve months.

Service Date – The initial date of hire at University of North Georgia or any other member of the University System of Georgia; the employee must have no break in service between employments for the service date to carry-forward.

Sexual Harassment – unwelcome sexual advances, requests for sexual favors and other verbal or physical conduct of a sexual nature.

Temporary Employee – an employee who is hired for a pre-established period, full-time or part-time, and is not eligible for benefits.

Termination – end of employment, whether voluntary or for cause.

Transfer - the movement of an employee from one position to another within the University or University System of Georgia.

Vesting – process by which retirement benefits become non-forfeitable. The time period to which an employee has a right to the employer contributions in a retirement plan. Vesting determines the percentage of a retirement account that may be paid out upon termination of employment, or upon retirement, and is usually determined by years of eligible employment.

For the TRS defined-benefit plan, a member with at least ten years of creditable service has a vested right to a benefit at age 60. If an employee has 10 or more years of creditable service and leave a TRS covered position, they will be entitled to a service retirement benefit upon attaining age 60 if they have not withdrawn their TRS contributions prior to that time.

For the ORP defined-contribution plan member vesting is immediate.

Workers' Compensation – state insurance program paid for by employers (UNG); designed to protect workers in cases of work-related injuries or diseases related to workers' employment.

Work Period – The time from the beginning of scheduled work hours until the beginning of a scheduled break, or from the end of a scheduled break until the end of scheduled work hours.